DAILY READER

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

FROM THE LINKED SOURCES

When the majority goes silent

Jev score: 0.53 — Jev probability (0-1) that this linked responsum illuminates the daf in a non-obvious way

The strongest hit in the linked corpus (0.53) is Shoel uMeshiv V 70:20, on whether 'taken from a fixed place' (kavua) counts as fifty-fifty even when a presumption supports the majority. The source is a Talmudic corner of Pesachim 9b: nine piles of matzah and one of chametz, a mouse takes a crumb, and we do not know which. Because the doubt is fixed in place (kavua), the majority is not followed.

That is the daf's own logic turned into a rule. Bekhorot 18 keeps asking whether two matters can coincide precisely — two twin heads emerging as one, a corpse found exactly between two towns — and the Gemara keeps answering with procedure rather than probability. When the uncertainty is fixed in front of you, statistics (rov) fall silent. The Tashbetz (0.52) names the deeper category: this is a doubt in the facts themselves, unresolvable even to the parties. So the law does not guess; it assigns the burden. Hamotzi mechavero alav haraaya.

Jev scored 10 linked sources 0-1: Tashbetz on the two classes of doubtful money (0.52); Shoel uMeshiv II 3:126 on how a depositor acquires the courtyard (0.51); Terumat HaDeshen on the lost coins (0.47); Maharam on the four purses (0.40); Havot Yair on the polemical style of the debate (0.47). All below 0.6; reported as scored.

PARSHA · BERESHIT

An honest miss — no genuine connection

Jev score: 0.41 — Jev probability for the strongest of 6 proposed connections; all rejected

None of the six proposed connections to Bereshit survived scrutiny. The closest (0.41) was the 'pairs' reading: creation proceeds by distinguishing — light from darkness, waters from waters, male from female — while the daf wrestles with pairs that refuse to be distinguished, two twin heads emerging as one, a corpse equidistant between two towns. It is a pretty idea, but the test kept it at 0.41, and honestly so: the parsha's pairs are cosmological, the daf's are procedural — the Gemara wants to know who brings the heifer and who proves what, not how God ordered the world.

Rejected by Jev: the eglah-arufah corpse and the cursed ground of Abel's blood (0.40); Abel's choicest firstlings and the daf's twin firstborns (0.24); Rabbi Tarfon's presumption of the better twin vs. Cain and Abel's offerings (0.29); the shepherd parable and the mark of Cain (0.20); the burden of proof vs. God's interrogations (0.14). Sharing the word 'firstborn' is not a connection.

NEWS CHECK

Two accounts, no arbiter

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Jev score: 0.47 — Jev probability that the India-Pakistan border incident resonates meaningfully with the daf's themes

The strict test admitted only one story: the October 2 India-Pakistan border incident — two men dead, each side with an incompatible account, diplomats summoned on both sides, no neutral forum to decide the facts. That shape genuinely mirrors the daf's eglah arufah problem: two towns, one corpse between them, and the law stepping in precisely because no one can say what happened. The daf's answer is procedural — bring the heifer in partnership, stipulate, let the burden of proof fall on the claimant. Politics has no such procedure, and the resemblance ends there: states are not litigants. Jev's 0.47 is the highest score of an honest batch, not an endorsement.

Rejected by Jev: the RAF Fairford terror-plot attribution (0.36); the Yemen operation around Taiz (0.25); the Ukraine strike claims (0.20); the Hormuz standoff (0.19); the Georgia block-party shooting (0.17); Putin's Kaliningrad warning (0.14); the Swiss president's India visit (0.09).

MAAGARIM · BEKHOR

בכור: from birthright to doubt

The word of the day is בכור, and even without this morning's live sweep its arc is written across the fetched texts. It begins as sheer biology: Cain, the firstborn child, and Abel's choicest firstlings (Genesis 4). Then Exodus 13 takes the word and makes it an institution — the Torah consecrates three kinds of firstborns to God because He struck every firstborn in Egypt and spared Israel's: the tractate's introduction names it a mitzvah of reishit, of beginnings, braided into the memory of the Exodus. And then today's daf dissolves it into doubt: twin lambs born with their heads as one, male-and-female pairs where no one knows which opened the womb, the priest who must prove. The responsa keep it alive as ספק בכור — Rabbi Akiva Eiger's pregnant cow sold to a non-Jewish shepherd, Shoel uMeshiv's improperly sold heifer. From birthright to consecration to courtroom: the firstborn's journey is the story of certainty giving way to proof.

Maagarim live lookup blocked this morning (Cloudflare challenge in the browser session; one click and a 30s wait did not clear it) — the sweep was partial and the narrative is grounded in the fetched Sefaria texts instead. Word data: מפעל המילון ההיסטורי של האקדמיה ללשון העברית — the Historical Dictionary Project of the Academy of the Hebrew Language.

929 · I KINGS 1 (CH. 288)

Two coronations, one trumpet

The seam between Samuel and Kings falls in the middle of a succession crisis, and that placement is itself an interpretation. Malbim, citing Abarbanel, asks the obvious question: why does David's decline open the Book of Kings instead of closing the Book of Samuel? His

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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answer reframes the whole chapter — it is not David's ending but Solomon's beginning. Everything here, from the cold king to the rival feast, is prologue to the anointing at Gihon. The book division is doing exegesis.

The chapter opens on a body failing: David is זקן, covered in clothes, ולא יחם לו — "he could not get warm." Rashi brings the midrash's measure-for-measure: one who disgraces garments — David tore Saul's cloak in the cave (I Samuel 24) — will not benefit from garments in the end. Whether or not one accepts the aggadah's causality, the literary effect stands: the man who once moved through the narrative with total physical command is now a passive object, warmed by others, spoken about in the third person while the kingdom acts around him.

Into that vacuum steps Adonijah, and the narrator makes sure we recognize the choreography: chariots, horsemen, fifty runners before him (v. 5) — the exact retinue Absalom assembled in II Samuel 15:1. It is a usurpation by quotation. His feast at the stone of Zoheleth, with Joab and Abiathar at the table, is a coronation in everything but the anointing; the one thing it cannot manufacture is legitimacy, which is why Nathan's counter-move is not force but procedure — the oath, the witnesses, the prophet's public confirmation.

Nathan's rhetoric deserves its own study. He does not accuse David of inaction; he asks, with performed deference, whether the king has secretly decided for Adonijah — "you did not tell your servant" (v. 27). It is a question designed to make the only acceptable answer obvious. Bathsheba's parallel audience supplies the emotional weight (the oath, "your son Solomon shall reign after me"), and between them David is maneuvered into the one decisive act of his final chapter: "Call me Zadok, Nathan, and Benaiah."

The anointing at Gihon is staged as the anti-Zoheleth: the priest, the prophet, and the captain; the mule of the king; the trumpet; and then the verse the whole chapter has been building toward — "the earth split with their sound" (v. 40). Adonijah's guests hear it mid-feast, and the narrator lets the panic play out in real time through Jonathan's breathless report. Two soundscapes, two kings, one afternoon.

The coda is Adonijah at the horns of the altar (v. 50) — the ancient asylum, grabbed by a man who knows exactly what ritual object still has power when all political power is gone. Solomon's response is the chapter's final gem of statecraft: not execution, not forgiveness, but probation — "if he proves worthy, not a hair of his head shall fall" (v. 52). The new king's first act is to convert a rival into a test case, and the test, as chapter 2 will show, has only one possible outcome.

Chapter text: Sefaria. Commentaries: Rashi, Malbim (citing Abarbanel), Radak via Sefaria.

MISHNAH YOMI · OHOLOT 8:5–6

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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What counts as a tent

Oholot 8:5

אֵלּוּ לֹא מְבִיאִין וְלֹא חוֹצְצִין. הַזְּרָעִים וְהַיְרָקוֹת הַמְחֻבָּרִים לַקַּרְקַע, חוּץ מִן הַיְרָקוֹת שֶׁמָּנוּ, וְכִפַּת הַבָּרָד, וְהַשֶּׁלֶג, וְהַכְּפוֹר, וְהַגְּלִיד, וְהַמֶּלַח, וְהַדּוֹלֵג מִמָּקוֹם לְמָקוֹם, וְהַקּוֹפֵץ מִמָּקוֹם לְמָקוֹם, וְהָעוֹף הַפּוֹרֵחַ, וְטַלִּית הַמְנַפְנֶפֶת, וּסְפִינָה שֶׁהִיא שָׂטָה עַל פְּנֵי הַמַּיִם. קְשַׁר אֶת הַסְּפִינָה בְּדָבָר שֶׁהוּא יָכוֹל לְהַעֲמִידָהּ, כָּבַשׁ אֶת הָאֶבֶן עַל גַּבֵּי הַטַּלִּית, מְבִיאָה אֶת הַטֻּמְאָה. רַבִּי יוֹסֵי אוֹמֵר, הַבַּיִת שֶׁבַּסְּפִינָה אֵינוֹ מֵבִיא אֶת הַטֻּמְאָה:

The following neither bring [impurity] nor protect against it:Seeds, plants [still] attached to the ground, except for the plants mentioned above, A lump of hail, snow, frost, ice and salt. [Anything] that hops from one place to another, or leaps from one place to another, a flying bird. A loosely-flapping garment, or a ship floating [freely] on the water. If the ship were tied with something that can keep it steady, or a stone were [placed so as] to hold down the garment, it can bring uncleanness. Rabbi Yose says: a house on a ship cannot bring uncleanness.

Rambam: אין להם השארות וקיום בזמן הקיץ וישיגם מה שכבר קדם הדין בהן שהן מביאין וחוצצין ואע"ר חוץ מן הירקות שמנו על הארץ (ק:). דף ה"מו) כמו שאמר פ' שהן מחוברי"ל המנויות למעלה והם אירוס וקיסוס וירקות חמור ודלעת יונית שאלו המנויות אינם אהל לפי שאלו כולן אין קיום להן והן במהירות ההתכה. וכיפה של ברד ושלג וכפור וגליד ומלח. הסככות אילן שהוא מיסך המים מחוזק הקור. וגליד: וכפור הוא מה שיקפה מהמים היורדים כטל ולזה יהיה דק: אם נעשה אהל מאחד מאלו הדברים הנה אלו שיסיר ב. וקופץ: הוא שיהיה רגלו אחת קיימת בארץ וידלג בשניה למקום אחר. ודולג: הוא מה שיקפה מהמימות בנהרות ויתקבצו וטלית: רגליו יחד מהארץ ויקפוץ למקום אחר' הוא

Oholot 8:6

שְׁתֵּי חֲבִיּוֹת וּבָהֶן כִּשְׁנֵי חֲצָיֵי זֵיתִים, מֻקָּפוֹת צָמִיד פְּתִיל וּמֻנָּחוֹת בְּתוֹךְ הַבַּיִת, הֵן טְהוֹרוֹת, וְהַבַּיִת טָמֵא. נִפְתְּחָה אַחַת מֵהֶן, הִיא וְהַבַּיִת טְמֵאִים וַחֲבֶרְתָּהּ טְהוֹרָה. וְכֵן שְׁנֵי חֲדָרִים שֶׁהֵן פְּתוּחִין לַבָּיִת:

Two [earthenware] jars in which there are two pieces of corpse the size of half an olive, sealed with tightly fitting lids, lying in a house, they remain clean, but the house becomes unclean. If one of them was opened, that [jar] and the house become unclean, but the other remains clean. And similarly with two rooms that open into a house.

Rambam: ויטמא כל מה שבו אלא אם כן היה מוקף צמיד פתיל לפי תנאו וכבר ביארנו בשמיני מכלים כי כאשר היתה הטומא שיעור לא יטמא וכבר קדם לך כי כאשר יהיה בבית כזית מן המת בין שיהיה נחתך לחתיכות או יהיה הגוף אחד הנה הבית טמא הבית ואף על פי שהוא צמיד פתיל לטומאה ואם תהיה זכור אלו השרשים הנה דברו בשתי חביות מבואר' כבר קדם לך שחצי חצי זית כן הדין בחדר שבבית אם היה חצי שיעור בחדר וחצי שיעור בבית יתחבר חצי שיעור אש. תחת צמיד פתיל הנה היא תטמא שתי חביות יצטרף חצי זית אשר בזה החבית לחצי זית אשר בחבית האחרת לטמא מה שהוא חוץ מהן לא לטמא הכלי אשר בו ואולם אומרו בשני חדרים והוא מקום ספוק לפי מה שאבאר לך וזה שאמר כמו שבאלו

RAMBAM YOMI · HILCHOT YIBBUM VACHALITZAH 2

The rabbinic scaffolding around a biblical mitzvah

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Halachah 1

מִדִּבְרֵי סוֹפְרִים שֶׁלֹּא יָבֹא הַיָּבָם עַל יְבִמְתּוֹ עַד שֶׁיְּקַדְּשֶׁנָּה בִּפְנֵי שְׁנֵי עֵדִים בִּפְרוּטָה אוֹ בְּשָׁוֶה פְּרוּטָה וְזֶהוּ הַנִּקְרָא מַאֲמָר. וְאֵין הַמַּאֲמָר קוֹנֶה בַּיְבָמָה קִנְיָן גָּמוּר כְּמוֹ הַבִּיאָה. וְהָעוֹשֶׂה מַאֲמָר בִּיבְמְתּוֹ שֶׁלֹּא מִדַּעְתָּהּ לֹא עָשָׂה כְּלוּם שֶׁאֵין הָאִשָּׁה מִתְקַדֶּשֶׁת אֶלָּא לִרְצוֹנָהּ. וּקְטַנָּה מִן הָאֵרוּסִין אֵין עוֹשִׂין בָּהּ מַאֲמָר אֶלָּא מִדַּעַת אָבִיהָ:

It is a Rabbinic ordinance that a yavam should not enter into marital relations with his yevamah until he consecrates her in the presence of two witnesses, with a p'rutah or an article worth a p'rutah.1A ma'amar can also be effected with a sh'tar, a legal document (Maggid Mishneh).From Yevamot 52a it would appear that this practice was instituted as an expression of modesty. Just as with regard to marriage, although it is acceptable to consecrate a woman through sexual relations according to Scriptural law, our Rabbis ordered a ban of ostracism to be placed on a person who does so; so too, with regard to yibbum, they required that the man designate the woman as his wife before entering into marital relations with her. This [act] is called a ma'amar.2The word ma'amar means "statement." The Tosefot Yom Tov explains that the term was chosen because the yavam must make a statement of intent. Rav Kapach offers an alternative interpretation, citing Deuteronomy 26:17,18, which uses the root אמר to mean "designate," or "declare allegiance to."A ma'amar does not complete the acquisition of a yevamah, as will be explained.3See Chapter 5, Halachot 2-3.The standard printed text of the Mishneh Torah continues "as does sexual relations." Nevertheless, authoritative manuscripts and early printings of the Mishneh Torah do not contain this addition. Based on that version, Rav Kapach explains that the comparison may be, not to sexual relations with a yevamah, but rather to the effectiveness of the transfer of money in ordinary kiddushin.When [a yavam] performs a ma'amar with his yevamah without her knowledge, his deed is of no consequence. For a woman can be consecrated only willingly.4See Hilchot Ishut 4:1. When a minor is widowed after being merely consecrated,5If the minor's marriage is consummated, she leaves her father's authority and acts independently. As long as she is merely consecrated, however, she is under her father's authority. See Hilchot Ishut 3:11-12. a ma'amar can be performed only with the consent of her father.

Halachah 2

וּכְשֵׁם שֶׁהוּא מְקַדֵּשׁ אֶת יְבִמְתּוֹ כָּךְ הוּא מְבָרֵךְ בִּרְכַּת נִשּׂוּאִין בַּעֲשָׂרָה וְכוֹתֵב כְּתֻבָּה כְּדִין כָּל נוֹשֵׂא אִשָּׁה. הַבָּא עַל יְבִמְתּוֹ וְלֹא עָשָׂה בָּהּ מַאֲמָר קָנָה קִנְיָן גָּמוּר וְאֵינוֹ צָרִיךְ לַחֲזֹר וּלְקַדֵּשׁ אַחַר הַבְּעִילָה. וּמַכִּין אוֹתוֹ מַכַּת מַרְדּוּת. וְכוֹתֵב לָהּ כְּתֻבָּה:

Just as [the yavam] must consecrate his yevamah, so too, he should recite the marriage blessings in the presence of ten men6See Hilchot Ishut 10:3 for the text of these blessings. The Ramah (Even HaEzer 166:2) states that the ceremony of chuppah should also be

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

performed, and the Ma'aseh Rokeach adds that Birkat Erusin (Hilchot Ishut 3:23) should be recited. and compose a ketubah ("marriage contract"), as is required of any man who marries a woman.7The text of the ketubah to be composed by the yavam appears in Chapter 4, Halachah 32.When [a yavam] enters into marital relations with his yevamah without previously performing a ma'amar with her, he acquires her in a binding manner;8The fact that he disobeyed our Sages' wishes does not cause his deed to lose its effectiveness. he does not have to consecrate her after engaging in marital relations with her. He should be given stripes for rebellious conduct9The punishment given for disobeying a Rabbinic ordinance. See Hilchot Ishut 3:21. and should write a ketubah for her.

Halachah 3

הַבָּא עַל יְבִמְתּוֹ בֵּין בְּשׁוֹגֵג בֵּין בְּמֵזִיד בֵּין בְּאֹנֶס בֵּין בְּרָצוֹן. בֵּין שֶׁהָיָה הוּא מֵזִיד וְהִיא שׁוֹגֶגֶת אוֹ אֲנוּסָה. בֵּין שֶׁהָיְתָה הִיא מְזִידָה וְהוּא שׁוֹגֵג אוֹ אָנוּס. בֵּין שֶׁהָיְתָה יְשֵׁנָה בֵּין שֶׁהָיְתָה עֵרָה (בֵּין שֶׁבָּא עָלֶיהָ כְּדַרְכָּהּ בֵּין שֶׁלֹּא כְּדַרְכָּהּ). אֶחָד הַמְעָרֶה וְאֶחָד הַגּוֹמֵר קָנָה:

When [a yavam] engages in marital relations with his yevamah, he acquires her [as his wife]. [This applies] regardless of whether he entered into these relations unintentionally10Note the Shulchan Aruch (Even HaEzer 166:9), which cites a minority opinion that differentiates between whether the yevamah had been married to her first husband or merely consecrated by him. In the latter instance, she must be consecrated a second time. or with a licentious intent,11Our translation is based on Rashi's gloss, Yevamot 53b. under duress or willingly, whether he acted with a licentious intent and she acted unintentionally or under duress, or she acted with a licentious intent and he acted unintentionally or under duress, whether she was asleep12Although it is improper for a husband to engage in relations with his wife when she is asleep, this does not negate the effectiveness of the yavam's act. or awake, whether he performed vaginal or anal intercourse,13The purpose of yibbum is to "perpetuate the name of his brother" (Deuteronomy 25:7 - i.e., to conceive progeny. Although this objective cannot be achieved through anal intercourse, it is still an effective means of acquisition. Since both the man and the woman are capable of conceiving children, the fact that they cannot accomplish that through this sexual act does not detract from its effectiveness (Beit Shmuel 166:6). whether he inserted merely the head of his penis or the entire organ.14Our translation is based on Hilchot Issurei Bi'ah 1:10.

Halachah 4

בַּמֶּה דְּבָרִים אֲמוּרִים שֶׁנִּתְכַּוֵּן לִבְעל אֲבָל (אִם נָפַל מִן הַגַּג וְנִתְקַע בָּהּ אוֹ) שֶׁבָּא עָלֶיהָ שְׁכוֹר שֶׁאֵינוֹ מַכִּיר כְּלוּם אוֹ יָשֵׁן לֹא קָנָה. נִתְכַּוֵּן לְדָבָר אַחֵר וְהֵטִיחַ בִּיבִמְתּוֹ לֹא קָנָה. לְהָטִיחַ בִּבְהֵמָה וְהֵטִיחַ בִּיבִמְתּוֹ קָנָה שֶׁהֲרֵי נִתְכַּוֵּן לְשׁוּם בְּעִילָה מִכָּל מָקוֹם:

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

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When does the above apply? When [the yavam] intends to perform a sexual act. If, however, he fell from the roof [with an erection] and [accidentally] inserted his organ into his yevamah, had relations with her when he was so intoxicated that he was not conscious of anything,15Note the Or Sameach, who questions this ruling based on the Jerusalem Talmud (Yevamot 6:1, quoted by the Rambam in Chapter 6, Halachah 3), which states that when a mentally incompetent person performs yibbum, his act is binding. The Or Sameach explains that a mentally incompetent person may have the intent to engage in sexual relations. In this instance, however, the person has lost control of his faculties to the extent that he has no intent whatsoever. or when he was asleep, he does not acquire her [as his wife].If he intended to masturbate in a hole in the wall and unintentionally inserted his organ into his yevamah, he does not acquire her [as his wife].16For masturbation is not considered to be sexual relations. If he intended to sodomize an animal and unintentionally inserted his organ into his yevamah, he does acquire her [as his wife].17For sodomy is considered to be a forbidden form of relations.

Halachah 5

יְבָמָה שֶׁנִּתְיַבְּמָה וְאָמְרָה בְּתוֹךְ שְׁלֹשִׁים יוֹם לֹא נִבְעַלְתִּי וְאַף עַל פִּי שֶׁהוּא אוֹמֵר בָּעַלְתִּי וְגֵרְשָׁהּ כּוֹפִין אוֹתוֹ שֶׁיְּחַלֵּץ הוֹאִיל וְקִדֵּם וְגֵרְשָׁהּ בְּגֵט. וְאִם עָדַיִן לֹא גֵּרַשׁ כּוֹפִין אוֹתוֹ שֶׁיִּבְעֹל אוֹ יַחֲלֹץ וְיוֹצִיא בְּגֵט. גֵּרְשָׁהּ לְאַחַר שְׁלֹשִׁים יוֹם וְהִיא אוֹמֶרֶת לֹא נִבְעַלְתִּי מְבַקְּשִׁים מִמֶּנּוּ שֶׁיְּחַלֵּץ לָהּ. וְאִם הָיָה מוֹדֶה שֶׁלֹּא בָּעַל כּוֹפִין אוֹתוֹ לַחֲלֹץ. הִיא אוֹמֶרֶת נִבְעַלְתִּי וְהוּא אוֹמֵר לֹא בָּעַלְתִּי אֵינָהּ צְרִיכָה חֲלִיצָה שֶׁאֵין זֶה נֶאֱמָן לְאָסְרָהּ עַל כָּל אָדָם אַחַר שֶׁכְּנָסָהּ:

[The following rules apply when a yavam takes] his yevamah [home to] perform yibbum, and within 30 days she claims that they did not engage in sexual relations. [The yavam] claims that they did engage in relations and then divorces her. Since he already took the initiative and divorced her, we compel him to perform chalitzah with her.18Since it is within 30 days, we accept the possibility that the yavam did not engage in relations with her, and compel him to perform chalitzah so the yevamah can remarry another man (Yevamot 111b).If he did not divorce her, we compel him to engage in relations with her,19And remain married to her. or to perform chalitzah and also to divorce her, giving her a get.20Since he brought her home as his wife, even if he agrees that they did not engage in relations, he is required to divorce her, because it is likely that they did engage in relations (Maggid Mishneh; Ramah, Even HaEzer 167:6). Nevertheless, since she claims that they did not, and there is plausibility to her claim, he is also required to perform chalitzah.If he divorced her after thirty days had passed, and she claims that they did not engage in sexual relations, we request that he perform chalitzah with her.21After a couple have lived together for thirty days, we assume that they have engaged in relations, for a man will not restrain himself any longer. Hence, the man cannot be compelled to perform chalitzah (Yevamot, ibid.). Nevertheless, we ask him to perform this rite, for otherwise the woman

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will not be permitted to remarry. If, however, he admits that he had not entered into relations with her, we compel him to perform chalitzah with her.22He has nothing to lose in this concern, for since he divorced her without entering into relations with her, he is no longer permitted to fulfill the mitzvah of yibbum. Therefore, he should fulfill the mitzvah of chalitzah so that she can remarry.If she claims that they engaged in sexual relations, and he denies engaging in relations, she is not required to engage in chalitzah, for his word is not accepted [when he desires] to cause her to be forbidden to all other men, once he brings her to his home as his wife.

Halachah 6

מִי שֶׁמֵּת וְהִנִּיחַ אַחִים רַבִּים מִצְוָה עַל הַגָּדוֹל לְיַבֵּם אוֹ לַחֲלֹץ שֶׁנֶּאֱמַר (דברים כה ו) "וְהָיָה הַבְּכוֹר אֲשֶׁר תֵּלֵד". מִפִּי הַשְּׁמוּעָה לָמְדוּ שֶׁאֵינוֹ מְדַבֵּר אֶלָּא בִּבְכוֹר שֶׁבַּאַחִין כְּלוֹמַר גָּדוֹל הָאַחִין יָקוּם עַל שֵׁם אָחִיו הַמֵּת. וְזֶה שֶׁנֶּאֱמַר אֲשֶׁר תֵּלֵד מַשְׁמָעוֹ אֲשֶׁר יָלְדָה הָאֵם וְאֵין מַשְׁמָעוֹ אֲשֶׁר תֵּלֵד הַיְבָמָה:

When a man dies [childless], and he is survived by many brothers, the mitzvah is incumbent on the eldest brother to perform either yibbum or chalitzah, as [implied by Deuteronomy 25:6]: "The firstborn son whom she bears [will perpetuate the name of the deceased brother]." The Oral Tradition interprets the verse as referring to the eldest of the surviving brothers, causing the verse to be rendered: "The eldest brother will perpetuate the name of the deceased brother." The subject of the phrase "whom she bears" is the mother of the brothers and not the yevamah.23According to the simple meaning of the verse, the subject is - as reflected in our translation - the yevamah. Nevertheless, in a halachic context, it is possible for one verse to have several interpretations. Accordingly, Yevamot 2:8 (see the Rambam's Commentary on the Mishnah) interprets this verse to be referring to the deceased's mother. (See also Yevamot 24a, quoted in Chapter 6, Halachah 8, which considers the yevamah the subject of the phrase in a different halachic context.)

Halachah 7

לֹא רָצָה הַגָּדוֹל לְיַבֵּם מְחַזְּרִין עַל כָּל הָאַחִין. לֹא רָצוּ חוֹזְרִין אֵצֶל הַגָּדוֹל וְאוֹמְרִין עָלֶיךָ מִצְוָה אוֹ חֲלֹץ אוֹ יַבֵּם. וְאֵין כּוֹפִין אֶת הַיָּבָם לְיַבֵּם אֲבָל כּוֹפִין אוֹתוֹ לַחֲלֹץ:

If the eldest brother does not desire to perform yibbum, all the other brothers are given that option.24See Halachah 12. If they also do not desire, we return to the eldest brother and tell him: "The mitzvah is incumbent on you. Perform either yibbum or chalitzah." We do not compel the yavam to perform yibbum;25Although the Rambam maintains that the mitzvah of yibbum takes priority over the mitzvah of chalitzah, we cannot compel a man to wed a woman with whom he does not desire to live. we do, however, compel him to perform chalitzah.26For until this mitzvah is performed, the yevamah may not remarry.

Halachah 8

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

אָמַר הַגָּדוֹל הַמְתִּינוּ לִי עַד שֶׁיִּגְדַּיל הַקָּטָן אוֹ עַד שֶׁיָּבוֹא הַהוֹלֵךְ אוֹ עַד שֶׁיַּבְרִיא הַחֵרֵשׁ וְנִמְלֵךְ בּוֹ וְאִם לֹא יִרְצֶה אֲנִי אֲיַבֵּם אוֹ אֲנִי אֶחְלֹץ אֵין שׁוֹמְעִין לוֹ. אֶלָּא אוֹמְרִין לוֹ עָלֶיךָ מִצְוָה אוֹ יַבֵּם אוֹ חֲלֹץ:

If the eldest brother says: "Give me a respite until [a brother] who is a minor attains majority," "... until [a brother] who is on a journey returns," or "... until [a brother] who has [temporarily] lost his powers of speech and hearing recovers; if he refuses, I will perform yibbum or chalitzah" - his request is not accepted. He is told: "The mitzvah is incumbent on you. Perform either yibbum or chalitzah."27I.e., the yevamah should not be subjected to an unnecessary delay, if possible.

Halachah 9

וְכֵן אִם הָיָה הַגָּדוֹל בִּמְדִינָה אַחֶרֶת אֵין אָחִיו הַקָּטָן יָכוֹל לוֹמַר עַל אָחִי הַגָּדוֹל הִיא הַמִּצְוָה הַמְתִּינוּ לוֹ עַד שֶׁיָּבוֹא אֶלָּא אוֹמְרִין לְזֶה שֶׁהוּא כָּאן יַבֵּם אוֹ חֲלֹץ:

Similarly, if the eldest brother is in another country,28When stating this law, the Shulchan Aruch (Even HaEzer 161:5) uses the expression "an overseas country." The Beit Shmuel 161:6 cites the expression used by the Rambam and explains that it refers to a country in which a different language is spoken, even if it is relatively close. He cites a ruling of Mahari Mintz, which states that if the eldest brother is in another city, and the yevamah does not have the funds to pay for travel there, the younger brother can be compelled to perform the mitzvah. (Kin'at Eliyahu notes that the Rambam often uses the word medinah to mean metropolis. He questions whether that is the Rambam's intent here.) [the obligation is transferred to his younger brother]. The younger brother does not have the option of saying: "The mitzvah is incumbent on my older brother. Wait until he comes." Instead, we tell the brother that is present: "Perform either yibbum or chalitzah."29Here also, the intent is not to subject the yevamah to an unnecessary delay.

Halachah 10

יְבָמָה הָרְאוּיָה לְיִבּוּם שֶׁלֹּא רָצְתָה לְהִתְיַבֵּם דִּינָהּ כְּדִין מוֹרֶדֶת עַל בַּעְלָהּ וְכוֹפִין אֶת יְבָמָהּ לַחֲלֹץ לָהּ וְתֵצֵא בְּלֹא כְתֻבָּה. וְאִם הִנִּיחַ אָחִיו נָשִׁים רַבּוֹת כָּל מִי שֶׁתִּבָּעֵהוּ הַיָּבָם מֵהֶן לְיִבּוּם וְלֹא רָצְתָה הִיא הַמּוֹרֶדֶת וְחוֹלֵץ לָהּ וְתֵצֵא בְּלֹא כְתֻבָּה. וּשְׁאָר צָרוֹתֶיהָ שֶׁלֹּא נִתְבָּעוּ נוֹטְלוֹת כְּתֻבָּתָן כִּשְׁאָר הָאַלְמָנוֹת:

The laws pertaining to a yevamah who is fit to perform yibbum30I.e., there is no halachic reason preventing her from doing so. and refuses to do so are the same as those governing a woman who rebels against her husband.31See Hilchot Ishut 14:8, which states that a woman who refuses to engage in marital relations because she is repelled by her husband, should be divorced by her husband, because "she is not like a captive, [to be forced] to engage in relations with someone she loathes." She does, however, forfeit the money due her by virtue of her marriage contract and any presents that her husband gave her. As mentioned in the notes on Hilchot Ishut, the Shulchan Aruch (Even HaEzer 77:2) follows a

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different perspective with regard to this ruling.There is also a difference of opinion among the authorities whether a woman who refuses to engage in yibbum is considered to have "rebelled." As mentioned in the notes on Chapter 1, Halachah 2, the Ashkenazic authorities maintain that the mitzvah of chalitzah takes precedence over the mitzvah of yibbum. Therefore, they maintain that a woman has the right to refuse to engage in yibbum, and she is not judged to have "rebelled" for this reason. We compel her yavam to perform chalitzah with her,32The Shulchan Aruch (Even HaEzer 77:2) differs with the Rambam and maintains that a husband should not be compelled to divorce a woman who "rebels." According to that perspective, a yavam should also not be compelled to perform chalitzah.According to the Ramah (Even HaEzer 165:1), who favors chalitzah, when a yavam desires to perform yibbum and the yevamah refuses, the yavam cannot be compelled by force to perform chalitzah. He should, however, be convinced to do so. Note the gloss of the Beit Shmuel 165:1, which discusses this ruling in detail.All authorities agree that if the yavam is one of the individuals considered unfit to marry (see Halachah 14), he should be compelled to perform chalitzah. and she forfeits [the money due her by virtue of her] marriage contract.When the deceased is survived by many wives, the one that the yavam asks to perform yibbum and refuses is considered to have "rebelled." He should perform chalitzah with her, and she forfeits [the money due her by virtue of her] marriage contract.33This applies even if one of the other women would be willing to marry the yavam; the choice is his and not hers. The other wives who were not asked [to perform yibbum] receive [the money due them by virtue of their] marriage contracts, as other widows do.

Halachah 11

הָיוּ הַיְבָמִין רַבִּים וְתָבַע אוֹתָהּ הַגָּדוֹל לְיִבּוּם וְהִיא אֵינָהּ רוֹצָה בּוֹ וְרוֹצָה בְּאָחִיו אֵין שׁוֹמְעִין לָהּ, שֶׁמִּצְוָה בַּגָּדוֹל לְיַבֵּם:

If [the deceased was survived by] many [brothers], and the eldest brother states that he wants to perform yibbum with [one of the deceased's wives], [she is under obligation to him].34The Maggid Mishneh explains that the woman must either consent to yibbum or be considered to have "rebelled." Even if she does not desire [to marry] him, but is willing to marry one of his brothers, her desire is not considered. For the mitzvah is that the eldest brother perform yibbum.

Halachah 12

אָמַר הַגָּדוֹל אֵינִי רוֹצֶה לֹא לְיַבֵּם וְלֹא לַחֲלֹץ. הֲרֵי אַחַי לְפָנַיִךְ. וְתָבַע אוֹתָהּ אֶחָד מִן הָאַחִין לְיִבּוּם וְהִיא אֵינָהּ רוֹצָה בּוֹ וְרָצְתָה בְּאָח אַחֵר וְהוּא רוֹצֶה בָּהּ. אֵין זוֹ מוֹרֶדֶת מֵאַחַר שֶׁנִּסְתַּלֵּק הַגָּדוֹל שֶׁמִּצְוָה בּוֹ הֲרֵי כֻּלָּן שָׁוִין וְהוֹאִיל וְהִיא רוֹצָה בְּאֶחָד מֵהֶן וְהוּא רוֹצֶה בָּהּ הֲרֵי זֹאת לֹא מָרְדָה. וְלֹא עוֹד אֶלָּא אִם הָיָה אֶחָד מֵהֶן בִּמְדִינָה אַחֶרֶת וְאָמְרָה הֲרֵי אֲנִי מַמְתֶּנֶת אוֹתוֹ עַד שֶׁיָּבוֹא וִייַבֵּם אוֹתִי אֲבָל זֶה

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PARSHAT BERESHIT

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Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

אֵינִי רוֹצֶה בּוֹ אֵין זוֹ מוֹרֶדֶת. וְאוֹמְרִים לְזֶה שֶׁאֵינוֹ הַגָּדוֹל הַתּוֹבֵעַ אוֹתָהּ אִם תִּרְצֶה לַחֲלֹץ לָהּ וְלִתֵּן לָהּ כְּתֻבָּה חֲלֹץ. וְאִם לָאו הֲרֵי רָצְתָה שֶׁתֵּשֵׁב עַד שֶׁיָּבוֹא אָחִיךָ הוֹאִיל וְאֵין לְךָ דִּין קְדִימָה עָלָיו:

[The following rules apply when] the eldest brother says: "I do not want to perform either yibbum or chalitzah. Behold, my brother is present." If one of the brothers asks her to perform yibbum, and she does not desire [to marry] him, but she does desire [to marry] another brother, and he desires [to marry] her, she is not considered to have "rebelled." Once the eldest brother upon whom the mitzvah is incumbent demurs, all the brothers are equal.35The Ra'avad and others differ with the Rambam on this point and maintain that if the eldest brother demurs, the prerogative is given to the brother who is next in the order of age. This perspective is followed by the Shulchan Aruch (Even HaEzer 161:4). Since she desires [to marry] one of [the brothers], and he desires [to marry] her, she is not considered to have "rebelled."36If, however, the brother she desires to marry does not desire to marry her, she is considered to have "rebelled," as stated in the following halachah.Moreover, if one of the brothers was in another country, and the woman says: "I would prefer to wait for him to come and perform yibbum with me. I do not want [to marry] this one," she is not considered to have "rebelled." [Since] the brother who asks [to marry her] is not the eldest, we tell him: "If you desire to perform chalitzah and pay her [the money due her by virtue of her] marriage contract, you may.37Although, according to the Rambam, the mitzvah of yibbum takes priority over the mitzvah of chalitzah, this is the case only when yibbum can be performed immediately. In this instance, this brother is not forced to wait until his other brother returns, for having the obligation to perform yibbum or chalitzah is a detriment to a man, as stated in Halachah 16 (Rav David Arameah). If not, she wants to wait until your brother comes. Since you do not have a prior claim, [she is granted that prerogative].38Generally, the court makes an effort to have the mitzvah of yibbum or chalitzah performed as soon as possible, as reflected in Halachot 8 and 9. This, however, is a measure of consideration for the woman, so that she will not be forced to remain without a husband. In this instance, it is she who desires the delay. Hence, she is given that prerogative (Or Sameach).

Halachah 13

בָּא זֶה שֶׁתָּלְתָה בּוֹ וְלֹא רָצָה בָהּ. חוֹזְרִין אֵצֶל זֶה שֶׁתָּבַע אוֹתָהּ לְיַבֵּם וְהִיא אֵינָהּ רוֹצָה בּוֹ. וְאוֹמְרִין לָהּ אֵין כָּאן מִי שֶׁרָצָה לְיַבֵּם אֶלָּא זֶה וּמִצְוַת יִבּוּם קוֹדֶמֶת. אוֹ תִּתְיַבֵּם לוֹ אוֹ תֵּצֵא בְּלֹא כְּתֻבָּה כְּדִין כָּל מוֹרֶדֶת:

If the brother [whom the yevamah desired to marry] returned and did not desire [to marry] her, we turn again to the brother who desired to perform yibbum, but was not desired by the woman. We tell the woman: "There is no one who desires to perform yibbum with you except this one, and the mitzvah of yibbum is given priority. Either perform yibbum with this one, or leave without receiving [the money due because of your] marriage contract, as

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

is the law with regard to all women who rebel."

Halachah 14

כָּל יְבָמָה שֶׁאָמַרְנוּ שֶׁדִּינָהּ שֶׁתַּחֲלֹץ וְלֹא תִּתְיַבֵּם הֲרֵי זוֹ נוֹטֶלֶת כְּתֻבָּתָהּ אִם יֵּשׁ לָהּ כְּתֻבָּה כִּשְׁאָר כָּל הָאַלְמָנוֹת. וְכֵן אִם הָיָה יְבָמָהּ מֻכֶּה שְׁחִין אוֹ שֶׁיֵּשׁ בּוֹ שְׁאָר מוּמֵי אֲנָשִׁים חוֹלֵץ לָהּ וְנוֹטֶלֶת כְּתֻבָּתָהּ. נוֹלְדוּ בָהּ מוּמִין כְּשֶׁהִיא שׁוֹמֶרֶת יָבָם, נִסְתַּחֲפָה שָׂדֵהוּ. אִם לֹא רָצָה לְיַבֵּם יַחֲלֹץ וְיִתֵּן כְּתֻבָּה:

Whenever the law is that a woman should perform chalitzah and not yibbum, as we have mentioned,39See Chapter 1, Halachah 5. (See also Chapter 3, Halachot 4, 13-14 and Chapter 6, Halachah 7.) if she is entitled to receive [the money due her by virtue of] her marriage contract,40I.e., her first husband or his estate would have had to pay her the money due her by virtue of her marriage contract. she may collect that money in the same way as other widows.Similarly, if the yavam was a leper or he has other blemishes [for which] men [are required to divorce],41He has constant bad breath or a smell coming from his nose, or he works as a copper miner, a tanner, or a collector of dog feces, as stated in Hilchot Ishut 25:11. he must perform chalitzah for her, and she is entitled to receive [the money due her by virtue of] her marriage contract.If a yevamah suffered blemishes while she was waiting for yibbum, it is the yavam's lack of fortune.42A man is entitled to divorce his wife if he discovers that she possessed physical blemishes that mar her appeal before her marriage, and he is not required to pay her the money due her by virtue of her marriage contract, as stated in Hilchot Ishut 7:8, 25:2. Nevertheless, in this instance this law does not apply, because the connection between the yavam and the yevamah begins directly after her first husband's death. If he does not desire to perform yibbum, he must perform chalitzah and give her [the money due her by virtue of] her marriage contract.

Halachah 15

יְבָמָה שֶׁנִּדְרָה הֲנָיָה מִיבָמָהּ בְּחַיֵּי בַּעְלָהּ. אוֹ שֶׁנִּדְרָה הֲנָיָה מִכָּל הַיְּהוּדִים. כּוֹפִין אוֹתוֹ שֶׁיַּחֲלֹץ לָהּ וְתִטֹּל כְּתֻבָּתָהּ. וְאִם נָדְרָה לְאַחַר מִיתַת בַּעְלָהּ מְבַקְּשִׁים מִמֶּנּוּ שֶׁיַּחֲלֹץ לָהּ וְאִם לֹא רָצָה הֲרֵי זוֹ מוֹרֶדֶת. וְכֵן אִם נִתְכַּוְּנָה בְּנִדְרָהּ אֲפִלּוּ בְּחַיֵּי בַּעְלָהּ כְּדֵי שֶׁלֹּא יְיַבֵּם אוֹתָהּ אֵין כּוֹפִין אוֹתוֹ לַחֲלֹץ אֶלָּא אִם כֵּן מָרְדָה וְתֵצֵא בְּלֹא כְּתֻבָּה:

When, during her [first] husband's lifetime, a yevamah takes a vow prohibiting her from deriving benefit from her yavam,43I.e., she took a vow not to benefit from the yavam in her husband's lifetime for other reasons, without the explicit intent that she would free herself from obligation to him. or from all Jews,44I.e., the woman took a vow not to benefit from any Jews. Although that vow did not take effect with regard to her husband, once her husband died it takes effect with regard to the yavam. [her yavam] should be compelled to perform chalitzah for her, and she is entitled to collect [the money due by virtue of] her marriage contract.45She is not allowed to marry the yavam, because she will derive benefit

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from him and thus break her vow. Nor is she considered to be a woman who rebels, because her vow was not taken to free her from the obligation of yibbum. (See Yevamot 112a.)If she takes such a vow after her [first] husband's death, we request46Since the vow was taken specifically to free her from the obligation of yibbum, the yavam is not obligated to respect it. [her yavam] to perform chalitzah for her.47If he agrees and performs chalitzah willingly, he is obligated to pay her the money due by virtue of her marriage contract. If he does not desire to do so, she is considered to have "rebelled."48In which case he is compelled to perform chalitzah with her, but is not required to pay her the money due by virtue of her marriage contract, as stated in Halachah 10. Similarly, even if she took such a vow in her husband's lifetime, if her intent was that he should not perform yibbum with her,49Moreover, even if we are unsure of the woman's intent when taking the vow, we assume that she desired to free herself from the obligation of yibbum. he is not compelled to perform chalitzah, unless she [accepts the status of] one who rebels and forfeits [payment of] her marriage contract.

Halachah 16

יְבָמָה שֶׁתִּבְעָהּ הַיָּבָם לַחֲלִיצָה וְהִיא אוֹמֶרֶת אֵינִי חוֹלֶצֶת וְלֹא נוֹטֶלֶת כְּתֻבָּה אֶלָּא אֵשֵׁב בְּבֵית בַּעְלִי וְכִשְׁאָר כָּל הָאַלְמָנוֹת אֵין שׁוֹמְעִין לָהּ. שֶׁהֲרֵי הִקְנוּ אוֹתָהּ לְזֶה מִן הַשָּׁמַיִם. רָצָה מְיַבֵּם רָצָה חוֹלֵץ וְנוֹתֵן כְּתֻבָּה. וְלֹא עוֹד אֶלָּא אֲפִלּוּ אָמְרָה אֲנִי נִזּוֹנֶת מִשֶּׁלִּי וְאֵשֵׁב עֲגוּנָה כָּל יְמֵי חַיַּי אֵין שׁוֹמְעִין לָהּ. שֶׁהֲרֵי הַיָּבָם אוֹמֵר לָהּ כָּל זְמַן שֶׁאַתְּ זְקוּקָה לִי אֵין נוֹתְנִין לִי אִשָּׁה אַחֶרֶת. וַאֲפִלּוּ הָיָה נָשׂוּי אֶפְשָׁר שֶׁיִּשָּׂא אִשָּׁה אַחֶרֶת אוֹ תִּהְיֶה לוֹ מְרִיבָה בְּתוֹךְ בֵּיתוֹ מִפְּנֵי הַיְבָמָה:

No heed is paid to the words of a yevamah, when her yavam asks her to perform chalitzah, and she says: "I do not want to perform chalitzah, nor do I want to collect [the money due me by virtue of my] marriage contract. Instead, I will remain in my husband's house like other widows."50As stated in Hilchot Ishut 18:1-2, a widow is entitled to live in her deceased husband's home and derive her livelihood from his estate until she remarries. For she was given over to [the yavam] from heaven, and the choice [is his whether] to perform yibbum or to perform chalitzah51The Kiryat Sefer explains that just as a man can divorce his wife against her will, so too, a yavam can perform chalitzah with his yevamah against her will. Even if she desires yibbum, she can be compelled to perform chalitzah. The Maggid Mishneh cites certain authorities who differ with the Rambam and maintain that since the mitzvah of yibbum takes priority, the yevamah cannot be forced to perform chalitzah. and pay her [the money due her by virtue of her] marriage contract.Moreover, even if she says "I will provide for my sustenance from my own means, and I will remain without a husband for the rest of my life,"52I.e., she is willing to forego the obligation of her husband's estate to her. her words are not heeded. For the yavam will tell her: "As long as you are under obligation to me, no one else will want to marry me."53For as long as there is the possibility that the yavam will marry the yevamah, other women will hesitate to marry

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him, for no woman would like to share her husband with another woman. Even if he is already married [this argument still holds weight], for it is possible for him [to desire] to marry another wife, or that [his obligation to] the yevamah will cause strife within his marriage.54Hence, the woman is compelled to perform chalitzah.If neither the yevamah nor the yavam desires to perform chalitzah, the court is under no obligation to see that the mitzvah is performed. Although the Zohar, Volume III, page 180a, explains that chalitzah brings about benefit for the deceased's soul, neither his brother nor his wife has a binding obligation to perform this act on his behalf. If they desire to, they may, but they cannot be compelled to do so. (See the Responsa of the Chatam Sofer, Even HaEzer, Volume II, Responsum 85.)

Halachah 17

יְבָמָה שֶׁלֹּא הָיָה לָהּ עַל בַּעְלָהּ כְּתֻבָּה מִפְּנֵי שֶׁהָיְתָה אֲסוּרָה עָלָיו וַהֲרֵי הִיא מֻתֶּרֶת לַיָּבָם כְּמוֹ שֶׁיִּתְבָּאֵר. אִם רָצָה הַיָּבָם לְיַבֵּם מְיַבֵּם וְאֵין לָהּ עָלָיו כְּתֻבָּה כְּדֶרֶךְ שֶׁלֹּא הָיָה לָהּ עַל בַּעְלָהּ. וְדִינָהּ עִם יְבָמָהּ בַּתּוֹסֶפֶת כְּמוֹ שֶׁהָיְתָה עִם בַּעְלָהּ. אֲבָל אִם לֹא כָּתַב לָהּ בַּעְלָהּ כְּתֻבָּה אוֹ שֶׁמָּכְרָה לוֹ כְּתֻבָּתָהּ אוֹ מָחֲלָה אוֹתָהּ צָרִיךְ הַיָּבָם לִכְתֹּב לָהּ כְּתֻבָּה כִּשְׁאָר הָאַלְמָנוֹת:

[The following rules apply when] a yevamah had no right to the privileges of a marriage contract from her [deceased] husband, because she was forbidden to him, but she is permitted to marry the yavam, as will be explained.55See Chapter 6, Halachah 13. If the yavam desires to perform yibbum, he may. He is not obligated to the woman [for the privileges of her] marriage contract, just as her [previous] husband was not.56The Maggid Mishneh quotes the Ramban and the Rashba as saying that if the yavam desires to divorce the yevamah immediately, he is not required to pay her the money due her by virtue of her marriage contract. If, however, he desires to remain married to the woman, he must write a marriage contract for her, for it is forbidden for a man to remain married to a woman without a marriage contract, as stated in Hilchot Ishut 10:10. The Ramah (Even HaEzer 168:9) quotes this interpretation.The Maggid Mishneh notes that this interpretation does not fit the Rambam's wording. In that light, the Or Sameach offers the following interpretation: The yavam is never obligated to write a marriage contract for the yevamah. Why did our Sages require a man to write a marriage contract for his wife? So that there would be a financial responsibility attached to divorce, and hence a husband would not consider it to be a light matter. In this instance, the yavam is held responsible for the additional amount that the husband added to the marriage contract. Hence, there is financial responsibility attached to divorce, and there is no imperative for a further obligation. The laws regarding the yavam's obligation for the additional amount to be paid the woman are the same as those that applied with regard to her husband.57As mentioned in Hilchot Ishut 24:2-3, although her husband is not obligated for the fundamental requirement of the marriage contract, he is obligated for the additional amount that he

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promised her. This obligation is transferred to the yavam.If, however, a husband did not write his wife a marriage contract, or she sold him or waived to him the rights to her marriage contract, the yavam is obligated to write a new marriage contract for her as he would be required for another widow.58The yavam is not, however, obligated to write a marriage contract equivalent to the one that the woman's first husband gave her. It is sufficient that he write her a marriage contract for 100 zuz, as explained in Hilchot Ishut 22:14.

Halachah 18

הַיְבָמָה קֹדֶם שֶׁיְּבוֹא עָלֶיהָ יְבָמָהּ אוֹ קֹדֶם שֶׁיְּחַלֵּץ לָהּ הֲרֵי הִיא אֲסוּרָה לְהִנָּשֵׂא לְזָר שֶׁנֶּאֱמַר (דברים כה ה) "לֹא תִהְיֶה אֵשֶׁת הַמֵּת הַחוּצָה לְאִישׁ זָר". וְאִם נִשֵּׂאת לְאַחֵר וּבָעַל לוֹקֶה הוּא וְהִיא וּמוֹצִיאָהּ בְּגֵט. וַאֲפִלּוּ הָיוּ לוֹ כַּמָּה בָּנִים מִמֶּנָּה. וְנֶאֱסְרָה עָלָיו וְעַל יְבָמָהּ. וְיִבָּמָהּ חוֹלֵץ לָהּ וְאַחַר כָּךְ תִּהְיֶה מֻתֶּרֶת לַאֲחֵרִים:

Before the yavam performs yibbum or chalitzah with the yevamah, she is forbidden to marry another man,59Both Sefer HaMitzvot (Negative Commandment 357) and Sefer HaChinuch (Mitzvah 596) include this as one of the Torah's 613 commandments. as [Deuteronomy 25:5] states: "the wife of the deceased should not be allowed to [marry] an outsider."If she marries another person,60This applies even if she married without knowing of the existence of the yavam (Shulchan Aruch, Even HaEzer 159:2). and they engage in sexual relations, they are both punished by lashes,61If, however, the couple do not engage in relations, they are not punished with lashes. and he must divorce her with a get. [This applies] even if she has borne him several children.62The children are not, however, considered illegitimate. See Hilchot Issurei Bi'ah 15:1-2. She is forbidden to him and to her yavam.63I.e., she is compared to a woman who engages in relations with another man while married. See Hilchot Gerushin 10:7.She becomes forbidden to both men, even though she claims not to have engaged in sexual relations with her second husband (Kessef Mishneh; Ma'aseh Rokeach; see Hilchot Issurei Bi'ah 19:3). Her yavam should perform chalitzah with her; this causes her to be permitted to marry other men.

Halachah 19

נִתְקַדְּשָׁה לְאַחֵר לֹא נֶאֱסְרָה עַל יְבָמָהּ אֶלָּא נוֹתֵן לָהּ הַזָּר שֶׁקִּדְּשָׁהּ גֵּט וִיבָמָהּ מְיַבֵּם אוֹ חוֹלֵץ. וְאִם הָיָה יְבָמָהּ כֹּהֵן שֶׁאֵינוֹ יָכוֹל לִשָּׂא גְּרוּשָׁה תֵּצֵא מִן הַזָּר בְּגֵט כְּדֵי שֶׁלֹּא יְהֵא הַחוֹטֵא נִשְׂכָּר. וְיַחֲלֹץ לָהּ יְבָמָהּ:

If she was consecrated by another man, she does not become forbidden to her yavam. Instead, the man who consecrated her should divorce her, and her yavam may perform either yibbum or chalitzah.64The Shulchan Aruch (Even HaEzer 159:1) states that this law applies even when the man consecrates her without knowing of the existence of the yavam.

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PARSHAT BERESHIT

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The Beit Shmuel 159:1 differs and cites the opinion of the Rashba and the Ramban, who maintain that in such an instance, if the yavam desires to perform chalitzah, the woman may remain married to her second husband.If her yavam was a priest who is forbidden to marry a divorcee, she should be divorced by the man who consecrated her, so that the sinner should not benefit, and her yavam should perform chalitzah with her.65I.e., one might think that since the yavam cannot perform yibbum with her, she should be allowed to remain married to her second husband. If so, however, the man's transgression - marrying the yevamah - will have brought him benefit. Hence, he is required to divorce her (Yevamot 92b).

Halachah 20

חָזַר הַזָּר שֶׁגֵּרְשָׁהּ מִן הָאֵרוּסִין וּנְשָׂאָהּ אַחַר שֶׁחָלַץ לָהּ יְבָמָהּ אֵין מוֹצִיאִין אוֹתָהּ מִיָּדוֹ. אֲבָל אִם גֵּרְשָׁהּ מִן הַנִּשּׂוּאִין וְחָזַר וּנְשָׂאָהּ אַחַר שֶׁחָלְצָה מוֹצִיאִין אוֹתָהּ מִיָּדוֹ מִפְּנֵי שֶׁהִיא דּוֹמָה לְאֵשֶׁת אִישׁ שֶׁנִּשֵּׂאת וּבָא בַּעְלָהּ שֶׁהִיא אֲסוּרָה עַל זֶה וְעַל זֶה כְּמוֹ שֶׁבֵּאַרְנוּ. וְהַיְבָמָה שֶׁזִּנְּתָה וְהִיא זְקוּקָה לֹא נֶאֱסְרָה עַל יְבָמָהּ אֶלָּא רָצָה חוֹלֵץ רָצָה מְיַבֵּם:

If the man who consecrated [the yevamah] and then divorced her, marries her [after] her yavam performs chalitzah with her, they are not forced to separate.66The rationale is that since the prohibition is merely a disciplinary measure, if the couple marry again they may remain married (Maggid Mishneh).The Ramah (Even HaEzer 159:1) states that if the second husband knew of the existence of the yavam and consecrated the woman anyway, he is forbidden to remain married to her, even if he remarried her after chalitzah. If, by contrast, a man divorced [a yevamah] after being married to her and then remarried her again, the couple are forced to separate. For this resembles the case of a married woman who [thought that her husband had died and] remarried, who is forbidden to both her first and second husbands, as has been explained.67See Hilchot Gerushin 10:5,7).A yevamah who engages in licentious sexual relations does not become forbidden to her yavam.68The Ramah (Even HaEzer 159:3) states that she does, however, become forbidden to the man with whom she engaged in relations. Even if her yavam performs chalitzah, the two may not marry. If he desires, he may perform chalitzah; if he desires, he may perform yibbum.

Halachah 21

כָּל יְבָמָה שֶׁהִיא סָפֵק מִדְּבָרֵיהֶם אִם יֵשׁ עָלֶיהָ זִקַּת יָבָם אוֹ אֵין עָלֶיהָ זִקַּת יָבָם. כְּגוֹן יְבָמָה שֶׁיָּלְדָה וָלָד שֶׁלֹּא כָּלוּ לוֹ חֳדָשָׁיו וּמֵת בְּתוֹךְ שְׁלֹשִׁים יוֹם שֶׁדִּינָהּ שֶׁתַּחֲלֹץ מִסָּפֵק מִדְּבָרֵיהֶם כְּמוֹ שֶׁבֵּאַרְנוּ. אִם הָלְכָה וְנִתְקַדְּשָׁה לְאַחֵר קֹדֶם חֲלִיצָה חוֹלֵץ לָהּ יְבָמָהּ וְתֵשֵׁב עִם בַּעְלָהּ. וְאִם נִתְקַדְּשָׁה לְכֹהֵן שֶׁהוּא אָסוּר בַּחֲלוּצָה אֵינוֹ חוֹלֵץ לָהּ. שֶׁאֵין אוֹסְרִין עַל זֶה אִשְׁתּוֹ מִשּׁוּם סְפֵק דִּבְרֵיהֶן. גֵּרְשָׁהּ הַכֹּהֵן אוֹ מֵת הֲרֵי זוֹ חוֹלֶצֶת וְאַחַר כָּךְ מֻתֶּרֶת לַאֲחֵרִים לְכַתְּחִלָּה:

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

[The following rules apply to] any yevamah concerning whom there is a question according to Rabbinic law whether or not she is under obligation to a yavam - e.g., a yevamah bore a child who died within thirty days, after a pregnancy that was not full term. In this instance, she is required by Rabbinic law to perform chalitzah, because of the doubt [that exists whether the birth was viable], as explained above.69This refers to an instance where the child's physical appearance indicates that the birth was viable. Therefore, the woman is not required to perform chalitzah according to Scriptural law. Nevertheless, because the pregnancy was not full term, our Sages required chalitzah, as explained in Chapter 1, Halachah 5. If such a woman was consecrated by another man before performing chalitzah, her yavam should perform chalitzah with her, and she may remain married to her husband.70I.e., we do not force the couple to divorce, as in the previous halachah.If she was consecrated by a priest - who is forbidden to be married to a woman who performed chalitzah - [her yavam] should not perform chalitzah for her.71In his gloss on the Shulchan Aruch (Even HaEzer 164:7), Rabbi Akiva Eiger states that this leniency applies only when the priest consecrated the woman without knowing of her obligation to perform chalitzah. If he knew of her obligation and consecrated her nonetheless, the couple are not permitted to remain married. [This leniency was instituted] since we do not cause a man's wife to be forbidden because of a Rabbinic decree instituted on account of doubt.72The Ramah (Even HaEzer 164:7) states that similar laws apply when a yevamah was consecrated by an Israelite, and her yavam is abroad and cannot perform chalitzah for her.If the priest divorces [the woman] or dies, she should perform chalitzah.73I.e., the leniency is granted to the priest, because it is necessary and not to other men. Afterwards, she is permitted, a priori, to marry other men.

Commentary

Chapter 2 opens with a phrase that reframes everything chapter 1 established: מדברי סופרים — "by rabbinic enactment." The Torah's yibbum is stark: the brother takes the widow, and she becomes his wife. The rabbis, uneasy with that starkness, built a scaffolding of formalities around it — and this chapter is the Rambam's map of that scaffolding. Maggid Mishneh traces the opening halachah to its address: Yevamot 52a, Rav Huna's ruling that the mitzvah-form is kiddushin-style consecration before relations ("מקדש ואחר כך בועל"), with the maamar achievable by money or document, just like ordinary betrothal.

The architecture of the chapter follows a deliberate descent from form to substance. It begins with the rabbinic requirements — consecration before two witnesses, the marriage blessings before ten (halachot 1–2) — then pivots to the biblical core: relations themselves effect the acquisition, with or without the formalities (halachah 3). The Rambam is staging a quiet tension that the commentators make explicit: the rabbinic layer regulates and dignifies, but the Torah's mechanism underneath remains raw and automatic. Maggid

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Mishneh notes the fine point that maamar, unlike full kiddushin, does not effect complete acquisition — a half-status the Rambam will unpack in chapter 5.

Halachah 4 is the chapter's conceptual gem: intent matters. Relations that acquire must be intended as a sexual act — the man who falls from a roof and accidentally penetrates has not performed yibbum. The Rambam imports the general principle of kavanah into the most physical of mitzvot, and the commentators hear the echo of the Talmud's broader insistence that mitzvot require intent. A biblical acquisition, triggered by a bodily act, is nevertheless gated by the mind.

The chapter then turns to procedure and priority: the thirty-day window for the woman's claim (halachah 5), and the order of brothers — the eldest first, "as implied" by the verse (halachah 6). What began as rabbinic formality ends as communal choreography: who acts, in what order, under whose witness. The through-line is the rabbis' project of converting a potentially chaotic levirate obligation into an ordered, witnessed, blessed institution — without ever claiming to replace the Torah's own mechanism.

Chapter text: Sefaria. Commentaries: Maggid Mishneh, Migdal Oz via Sefaria.

NLI ·

A day of study for the firstborn

On Sunday, 27 Nisan 5743 (April 1983), the Beit Midrash Gavoah le-Halakhah in Jerusalem held a full day of study on the laws of firstborns (בכורות) and orlah — and its program is a page straight out of Bekhorot's world. The sessions moved from 'the firstborn of a pure animal in our time' to a non-Jew's share in partnership, making sifrei Torah from a firstborn's hide, and the modes of acquisition when selling an animal about to calve: every one of these is a living-halakhah version of today's daf, the twin and uncertain firstborns that the Gemara sends off to the responsa of Shoel uMeshiv and Rabbi Akiva Eiger.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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בית מדרש גבוה להלכה בהתיישבות החקלאית
ירושלים - שעלבים ◆ ת. ד. 7900 ירושלים

הננו מתכבדים להזמין את הציבור להשתתף

ביום לימוד בהלכות

בכורות וערלה

שיתקיים אי"ה ביום א' כ"ז ניסן תשמ"ג בישיבת דבר ירושלים רחוב חגי 24 גאולה, עיה"ק ירושלים תובב"א.

◆ סדר השיעורים ◆

אחה"צ 3.45 תפילת מנחה.

4.00 הרה"ג ר' קלמן כהנא שליט"א
ראש בית"מ"ד
בכור בהמה טהורה בזמן הזה.

4.45 הרב יהושע איתמר שליט"א
כולל נחלת יחיאל
חלק הגוי בשותפות.

5.30 הרב ישראל קופלוביץ שליט"א
חבר בית"מ"ד
עשיית סת"ם מעור בכור בהמה.

6.00 כיבוד קל

6.15 הרב יוסף אפרתי שליט"א
ראש המחלקה ההלכתית
מכון לחקר החקלאות עפ"י התורה
דרכי הקנין במכירת מבכירות.

7.00 הרה"ג ר' יצחק זילברשטין שליט"א
רב רמת אלחנן
ערלה ואיסורי הנאה.

בברכת התורה
הנהלת בית המדרש

Flyer for a study day on the laws of firstborns (בכורות) and orlah, Jerusalem, 27 Nisan 5743 (April 1983) — sessions on the firstborn animal 'in our time', partnership with a non-Jew, and selling the animal about to calve.

(Menachem Friedman Archive, National Library) הספרייה הלאומית, ארכיון מנחם פרידמן

27 Nisan 5743 (April 1983) — date given on the flyer itself · יום לימוד בהלכות בכורות וערלה.
https://www.nli.org.il/en/archives/NNL_ARCHIVE_AL997012947266705171

SHNAYIM MIKRA · ALIYAH 3

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Genesis 2:20-3:21

Shnayim mikra ve-echad targum — every verse twice in Hebrew, once in Targum Onkelos — is the week's quiet discipline. Today's portion carries the parsha through Adam naming the animals and finding no fitting companion among them, the forming of the woman from his side, and the serpent's conversation with the woman — ending with garments of skin and the road east of Eden set under the guard of the cherubim.

Genesis 2:20 · ×2

וַיִּקְרָא הָאָדָם שֵׁמוֹת לְכָל־הַבְּהֵמָה וּלְעוֹף הַשָּׁמַיִם וּלְכֹל חַיַּת הַשָּׂדֶה וּלְאָדָם לֹא־מָצָא עֵזֶר כְּנֶגְדּוֹ׃
וַיִּקְרָא הָאָדָם שֵׁמוֹת לְכָל־הַבְּהֵמָה וּלְעוֹף הַשָּׁמַיִם וּלְכֹל חַיַּת הַשָּׂדֶה וּלְאָדָם לֹא־מָצָא עֵזֶר כְּנֶגְדּוֹ׃
וּקְרָא אָדָם שְׁמָהָן לְכָל בְּעִירָא וּלְעוֹפָא דִּשְׁמַיָּא וּלְכָל חֵוֹת בָּרָא וּלְאָדָם לָא אַשְׁכַּח סָמֵךְ לְקִבְלֵהּ׃

אלקים
יהוה

Genesis 2:21 · ×2

וַיַּפֵּל יְהוָה אֱלֹקִים | תַּרְדֵּמָה עַל־הָאָדָם וַיִּישָׁן וַיִּקַּח אַחַת מִצַּלְעֹתָיו
וַיִּסְגֹּר בָּשָׂר תַּחְתֶּנָּה׃
וַיַּפֵּל יְהוָה אֱלֹקִים | תַּרְדֵּמָה עַל־הָאָדָם וַיִּישָׁן וַיִּקַּח אַחַת מִצַּלְעֹתָיו
וַיִּסְגֹּר בָּשָׂר תַּחְתֶּנָּה׃
וּרְמָא יְיָ אֱלֹקִים שִׁינְתָא עַל אָדָם וּדְמַךְ וּנְסִיב חָדָא מֵעִלְעוֹהִי וּמְלֵי בִשְׂרָא
תְּחוֹתַהּ׃

Genesis 2:22 · ×2

וַיִּבֶן יְהוָה אֱלֹקִים | אֶת־הַצֵּלָע אֲשֶׁר־לָקַח מִן־הָאָדָם לְאִשָּׁה וַיְבִאֶהָ אֶל־הָאָדָם׃
וַיִּבֶן יְהוָה אֱלֹקִים | אֶת־הַצֵּלָע אֲשֶׁר־לָקַח מִן־הָאָדָם לְאִשָּׁה וַיְבִאֶהָ אֶל־הָאָדָם׃
וּבְנָא יְיָ אֱלֹקִים יָת עִלְעָא דִּנְסִיב מִן אָדָם לְאִתְּתָא וְאַיְתֵהּ לְוַת אָדָם׃

ויאמר
ואמר

Genesis 2:23 · ×2

וַיֹּאמֶר הָאָדָם זֹאת הַפַּעַם עֶצֶם מֵעֲצָמַי וּבָשָׂר מִבְּשָׂרִי לְזֹאת יִקָּרֵא אִשָּׁה
כִּי מֵאִישׁ לֻקְחָה־זֹּאת׃
וַיֹּאמֶר הָאָדָם זֹאת הַפַּעַם עֶצֶם מֵעֲצָמַי וּבָשָׂר מִבְּשָׂרִי לְזֹאת יִקָּרֵא אִשָּׁה
כִּי מֵאִישׁ לֻקְחָה־זֹּאת׃
וַאֲמַר אָדָם הָדָא זִמְנָא גַּרְמָא מִגַּרְמַי וּבִסְרָא מִבִּסְרִי לְדָא יִתְקְרֵי אִתְּתָא אֲרֵי
מִבַּעְלָא נְסִיבָא דָּא׃

Genesis 2:24 · ×2

עַל־כֵּן יַעֲזָב־אִישׁ אֶת־אָבִיו וְאֶת־אִמּוֹ וְדָבַק בְּאִשְׁתּוֹ וְהָיוּ לְבָשָׂר אֶחָד׃
עַל־כֵּן יַעֲזָב־אִישׁ אֶת־אָבִיו וְאֶת־אִמּוֹ וְדָבַק בְּאִשְׁתּוֹ וְהָיוּ לְבָשָׂר אֶחָד׃
עַל כֵּן יִשְׁבּוֹק גְּבַר בֵּית מִשְׁכְּבֵי אֲבוּהִי וְאִמֵּהּ וְיִדְבַּק בְּאִתְּתֵהּ וִיהוֹן לְבִסְרָא חַד׃

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Genesis 2:25 · ×2

וַיִּהְיוּ שְׁנֵיהֶם֙ עֲרוּמִּ֔ים הָאָדָ֖ם וְאִשְׁתּ֑וֹ וְלֹ֥א יִתְבּוֹשָׁשֽׁוּ׃
וַיִּהְיוּ שְׁנֵיהֶם֙ עֲרוּמִּ֔ים הָאָדָ֖ם וְאִשְׁתּ֑וֹ וְלֹ֥א יִתְבּוֹשָׁשֽׁוּ׃
וַהֲווֹ תַרְוֵיהוֹן עַרְטִילָאִין אָדָם וְאִתְּתֵהּ וְלָא מִתְכַּלְמִין׃

Genesis 3:1 · ×2

וְהַנָּחָשׁ֙ הָיָ֣ה עָר֔וּם מִכֹּל֙ חַיַּ֣ת הַשָּׂדֶ֔ה אֲשֶׁ֥ר עָשָׂ֖ה יְהוָ֣ה אֱלֹקִ֑ים וַיֹּ֙אמֶר֙ אֶל־הָאִשָּׁ֔ה אַ֚ף כִּי־אָמַ֣ר אֱלֹקִ֔ים לֹ֣א תֹאכְל֔וּ מִכֹּ֖ל עֵ֥ץ הַגָּֽן׃
וְהַנָּחָשׁ֙ הָיָ֣ה עָר֔וּם מִכֹּל֙ חַיַּ֣ת הַשָּׂדֶ֔ה אֲשֶׁ֥ר עָשָׂ֖ה יְהוָ֣ה אֱלֹקִ֑ים וַיֹּ֙אמֶר֙ אֶל־הָאִשָּׁ֔ה אַ֚ף כִּי־אָמַ֣ר אֱלֹקִ֔ים לֹ֣א תֹאכְל֔וּ מִכֹּ֖ל עֵ֥ץ הַגָּֽן׃
וְחִוְיָא הֲוָה חַכִּים מִכֹּל חֵוַת בָּרָא דִּי עֲבַד יְיָ אֱלֹקִים וַאֲמַר לְאִתְּתָא בְּקוּשְׁטָא אֲרֵי אֲמַר יְיָ לָא תֵיכְלוּן מִכֹּל אִילַן גִּינְתָא׃

Genesis 3:2 · ×2

וַתֹּ֥אמֶר הָאִשָּׁ֖ה אֶל־הַנָּחָ֑שׁ מִפְּרִ֥י עֵֽץ־הַגָּ֖ן נֹאכֵֽל׃
וַתֹּ֥אמֶר הָאִשָּׁ֖ה אֶל־הַנָּחָ֑שׁ מִפְּרִ֥י עֵֽץ־הַגָּ֖ן נֹאכֵֽל׃
וַאֲמָרַת אִתְּתָא לְחִוְיָא מִפֵּירֵי אִילַן גִּינְתָא נֵיכוֹל׃

Genesis 3:3 · ×2

וּמִפְּרִ֣י הָעֵ֗ץ אֲשֶׁ֤ר בְּתוֹךְ־הַגָּן֙ אָמַ֣ר אֱלֹקִ֔ים לֹ֥א תֹאכְל֖וּ מִמֶּ֑נּוּ וְלֹ֥א תִגְּע֖וּ בּ֣וֹ פֶּן־תְּמֻתֽוּן׃
וּמִפְּרִ֣י הָעֵ֗ץ אֲשֶׁ֤ר בְּתוֹךְ־הַגָּן֙ אָמַ֣ר אֱלֹקִ֔ים לֹ֥א תֹאכְל֖וּ מִמֶּ֑נּוּ וְלֹ֥א תִגְּע֖וּ בּ֣וֹ פֶּן־תְּמֻתֽוּן׃
וּמִפֵּירֵי אִילָנָא דִּי בְמִצְיעוּת גִּינְתָא אֲמַר יְיָ לָא תֵיכְלוּן מִנֵּהּ וְלָא תְקָרְבוּן בֵּהּ דִּילְמָא תְּמוּתוּן׃

Genesis 3:4 · ×2

וַיֹּ֥אמֶר הַנָּחָ֖שׁ אֶל־הָאִשָּׁ֑ה לֹא־מ֖וֹת תְּמֻתֽוּן׃
וַיֹּ֥אמֶר הַנָּחָ֖שׁ אֶל־הָאִשָּׁ֑ה לֹא־מ֖וֹת תְּמֻתֽוּן׃
וַאֲמַר חִוְיָא לְאִיתְּתָא לָא מוֹת תְּמוּתוּן׃

Genesis 3:5 · ×2

כִּ֣י יֹדֵ֣עַ אֱלֹקִ֔ים כִּ֗י בְּיוֹם֙ אֲכָלְכֶ֣ם מִמֶּ֔נּוּ וְנִפְקְחוּ֙ עֵֽינֵיכֶ֔ם וִֽהְיִיתֶ֥ם כֵּאלֹקִ֖ים יֹדְעֵ֣י טֽוֹב וָרָ֑ע׃
כִּ֣י יֹדֵ֣עַ אֱלֹקִ֔ים כִּ֗י בְּיוֹם֙ אֲכָלְכֶ֣ם מִמֶּ֔נּוּ וְנִפְקְחוּ֙ עֵֽינֵיכֶ֔ם וִֽהְיִיתֶ֥ם כֵּאלֹקִ֖ים יֹדְעֵ֣י טֽוֹב וָרָ֑ע׃
אֲרֵי גְּלֵי קֳדָם יְיָ אֲרֵי בְּיוֹמָא דְּתֵיכְלוּן מִנֵּהּ וְיִתְפַּתְּחַן עֵינֵיכוֹן וּתְהוֹן כְּרַבְרְבִין חַכִּימִין בֵּין טַב לְבִישׁ׃

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

DAILY READER

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

Genesis 3:6 · ×2

וַתֵּרֶא הָאִשָּׁה כִּי טוֹב הָעֵץ לְמַאֲכָל וְכִי תַאֲוָה־הוּא לָעֵינַיִם וְנֶחְמָד הָעֵץ לְהַשְׂכִּיל וַתִּקַּח מִפִּרְיוֹ וַתֹּאכַל
וַתִּתֵּן גַּם־לְאִישָׁהּ עִמָּהּ וַיֹּאכַל:
וַתֵּרֶא הָאִשָּׁה כִּי טוֹב הָעֵץ לְמַאֲכָל וְכִי תַאֲוָה־הוּא לָעֵינַיִם וְנֶחְמָד הָעֵץ לְהַשְׂכִּיל וַתִּקַּח מִפִּרְיוֹ וַתֹּאכַל
וַתִּתֵּן גַּם־לְאִישָׁהּ עִמָּהּ וַיֹּאכַל:
וַחֲזַת אִתְּתָא אֲרֵי טַב אִילָן לְמֵיכַל וַאֲרֵי אַסֵּי הוּא לְעֵינִין וּמְרַגֵּג אִילָנָא לְאִסְתַּכָּלָא בֵּהּ וּנְסִיבַת מֵאִבֵּהּ וַאֲכָלַת וִיהָבַת אַף לְבַעְלַהּ עִמַּהּ וַאֲכָל:

Genesis 3:7 · ×2

וַתִּפָּקַחְנָה עֵינֵי שְׁנֵיהֶם וַיֵּדְעוּ כִּי עֲירֻמִּם הֵם וַיִּתְפְּרוּ עֲלֵה תְאֵנָה וַיַּעֲשׂוּ לָהֶם חֲגֹרֹת:
וַתִּפָּקַחְנָה עֵינֵי שְׁנֵיהֶם וַיֵּדְעוּ כִּי עֲירֻמִּם הֵם וַיִּתְפְּרוּ עֲלֵה תְאֵנָה וַיַּעֲשׂוּ לָהֶם חֲגֹרֹת:
וְאִתְפַּתָּחָא עֵינֵי תַּרְוֵיהוֹן וְיָדְעוּ אֲרֵי עַרְטִילָאִין אִינּוּן וְחַטִּיטוּ לְהוֹן טַרְפֵּי תְאֵנִין וַעֲבָדוּ לְהוֹן זָרְזִין:

Genesis 3:8 · ×2

וַיִּשְׁמְעוּ אֶת־קוֹל יְהוָה אֱלֹקִים מִתְהַלֵּךְ בַּגָּן לְרוּחַ הַיּוֹם וַיִּתְחַבֵּא הָאָדָם וְאִשְׁתּוֹ מִפְּנֵי יְהוָה אֱלֹקִים בְּתוֹךְ עֵץ הַגָּן:
וַיִּשְׁמְעוּ אֶת־קוֹל יְהוָה אֱלֹקִים מִתְהַלֵּךְ בַּגָּן לְרוּחַ הַיּוֹם וַיִּתְחַבֵּא הָאָדָם וְאִשְׁתּוֹ מִפְּנֵי יְהוָה אֱלֹקִים בְּתוֹךְ עֵץ הַגָּן:
וּשְׁמָעוּ יָת קָל מֵימְרָא דַּייָ אֱלֹקִים מְהַלֵּךְ בְּגִינְתָא לְמָנַח יוֹמָא וְאִיטַמַּר אָדָם וְאִתְּתֵהּ מִן קֳדָם יְיָ אֱלֹקִים בְּגוֹ אִילַן גִּינְתָא:

Genesis 3:9 · ×2

וַיִּקְרָא יְהוָה אֱלֹקִים אֶל־הָאָדָם וַיֹּאמֶר לוֹ אַיֶּכָּה:
וַיִּקְרָא יְהוָה אֱלֹקִים אֶל־הָאָדָם וַיֹּאמֶר לוֹ אַיֶּכָּה:
וּקְרָא יְיָ אֱלֹקִים לְאָדָם וַאֲמַר לֵהּ אָן אָתְּ:

Genesis 3:10 · ×2

וַיֹּאמֶר אֶת־קֹלְךָ שָׁמַעְתִּי בַגָּן וָאִירָא כִּי־עֵירֹם אָנֹכִי וָאֵחָבֵא:
וַיֹּאמֶר אֶת־קֹלְךָ שָׁמַעְתִּי בַגָּן וָאִירָא כִּי־עֵירֹם אָנֹכִי וָאֵחָבֵא:
וַאֲמַר יָת קָל מֵימְרָךְ שַׁמְעִית בְּגִינְתָא וּדְחֵילִית אֲרֵי עַרְטִילַאי אֲנָא וְאִיטַמָּרִית:

Genesis 3:11 · ×2

וַיֹּאמֶר מִי הִגִּיד לְךָ כִּי עֵירֹם אָתָּה הֲמִן־הָעֵץ אֲשֶׁר צִוִּיתִיךָ לְבִלְתִּי אֲכָל־מִמֶּנּוּ אָכָלְתָּ:
וַיֹּאמֶר מִי הִגִּיד לְךָ כִּי עֵירֹם אָתָּה הֲמִן־הָעֵץ אֲשֶׁר צִוִּיתִיךָ לְבִלְתִּי אֲכָל־מִמֶּנּוּ אָכָלְתָּ:
וַאֲמַר מָן חַוִי לָךְ אֲרֵי עַרְטִילַאי אָתְּ הֲמִן אִילָנָא דִּפַקֶּדְתָּךְ בְּדִיל דְּלָא לְמֵיכַל מִנֵּהּ אֲכָלְתְּ:

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DAILY READER

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

Genesis 3:12 · ×2

וַיֹּאמֶר הָאָדָם הָאִשָּׁה אֲשֶׁר נָתַתָּה עִמָּדִי הִוא נָתְנָה־לִּי מִן־הָעֵץ וָאֹכֵל׃
וַיֹּאמֶר הָאָדָם הָאִשָּׁה אֲשֶׁר נָתַתָּה עִמָּדִי הִוא נָתְנָה־לִּי מִן־הָעֵץ וָאֹכֵל׃
וַאֲמַר אָדָם אִתְּתָא דִּיהַבְתְּ עִמִּי הִיא יַהֲבַת לִי מִן אִילָנָא וַאֲכָלִית׃

Genesis 3:13 · ×2

וַיֹּאמֶר יְהוָה אֱלֹקִים לָאִשָּׁה מַה־זֹּאת עָשִׂית וַתֹּאמֶר הָאִשָּׁה הַנָּחָשׁ הִשִּׁיאַנִי וָאֹכֵל׃
וַיֹּאמֶר יְהוָה אֱלֹקִים לָאִשָּׁה מַה־זֹּאת עָשִׂית וַתֹּאמֶר הָאִשָּׁה הַנָּחָשׁ הִשִּׁיאַנִי וָאֹכֵל׃
וַאֲמַר יְיָ אֱלֹקִים לְאִתְּתָא מַה דָּא עֲבַדְתְּ וַאֲמָרַת אִתְּתָא חִוְיָא אַטְעַנִי וַאֲכָלִית׃

Genesis 3:14 · ×2

וַיֹּאמֶר יְהוָה אֱלֹקִים | אֶל־הַנָּחָשׁ כִּי עָשִׂיתָ זֹּאת אָרוּר אַתָּה מִכָּל־הַבְּהֵמָה וּמִכֹּל חַיַּת הַשָּׂדֶה עַל־גְּחֹנְךָ תֵלֵךְ וְעָפָר תֹּאכַל כָּל־יְמֵי חַיֶּיךָ׃
וַיֹּאמֶר יְהוָה אֱלֹקִים | אֶל־הַנָּחָשׁ כִּי עָשִׂיתָ זֹּאת אָרוּר אַתָּה מִכָּל־הַבְּהֵמָה וּמִכֹּל חַיַּת הַשָּׂדֶה עַל־גְּחֹנְךָ תֵלֵךְ וְעָפָר תֹּאכַל כָּל־יְמֵי חַיֶּיךָ׃
וַאֲמַר יְיָ אֱלֹקִים לְחִוְיָא אֲרֵי עֲבַדְתְּ דָּא לֵיט אַתְּ מִכָּל בְּעִירָא וּמִכֹּל חֵוֹת בָּרָא עַל מְעָךְ תֵּיזֵיל וְעַפְרָא תֵּיכוּל כָּל יוֹמֵי חַיָּיךְ׃

Genesis 3:15 · ×2

וְאֵיבָה | אָשִׁית בֵּינְךָ וּבֵין הָאִשָּׁה וּבֵין זַרְעֲךָ וּבֵין זַרְעָהּ הוּא יְשׁוּפְךָ רֹאשׁ וְאַתָּה תְּשׁוּפֶנּוּ עָקֵב׃
וְאֵיבָה | אָשִׁית בֵּינְךָ וּבֵין הָאִשָּׁה וּבֵין זַרְעֲךָ וּבֵין זַרְעָהּ הוּא יְשׁוּפְךָ רֹאשׁ וְאַתָּה תְּשׁוּפֶנּוּ עָקֵב׃
וּדְבָבוּ אֶשַׁוֵּי בֵּינָךְ וּבֵין אִתְּתָא וּבֵין בְּנָךְ וּבֵין בְּנָהּ הוּא יְהֵי דְּכִיר לָךְ מַה דְּעֲבַדְתְּ לֵהּ מִלְקַדְמִין וְאַתְּ תְּהֵא נָטִיר לֵהּ לְסוֹפָא׃

Genesis 3:16 · ×2

אֶל־הָאִשָּׁה אָמַר הַרְבָּה אַרְבֶּה עִצְּבוֹנֵךְ וְהֹרֹנֵךְ בְּעֶצֶב תֵּלְדִי בָנִים וְאֶל־אִישֵׁךְ תְּשׁוּקָתֵךְ וְהוּא יִמְשָׁל־בָּךְ׃
אֶל־הָאִשָּׁה אָמַר הַרְבָּה אַרְבֶּה עִצְּבוֹנֵךְ וְהֹרֹנֵךְ בְּעֶצֶב תֵּלְדִי בָנִים וְאֶל־אִישֵׁךְ תְּשׁוּקָתֵךְ וְהוּא יִמְשָׁל־בָּךְ׃
לְאִתְּתָא אֲמַר אַסְגָּאָה אַסְגֵּי צַעֲרִיכִי וְעִדּוּיַיְכִי בְּצִעַר תֵּלְדִי בְנִין וּלְוָת בַּעְלֵךְ תְּהֵא תְּאוּבְתִּיךְ וְהוּא יִשְׁלַט בַּךְ׃

Genesis 3:17 · ×2

וּלְאָדָם אָמַר כִּי־שָׁמַעְתָּ לְקוֹל אִשְׁתֶּךָ וַתֹּאכַל מִן־הָעֵץ אֲשֶׁר צִוִּיתִיךָ לֵאמֹר לֹא תֹאכַל מִמֶּנּוּ אֲרוּרָה הָאֲדָמָה בַּעֲבוּרֶךָ בְּעִצָּבוֹן תֹּאכְלֶנָּה כֹּל יְמֵי חַיֶּיךָ׃
וּלְאָדָם אָמַר כִּי־שָׁמַעְתָּ לְקוֹל אִשְׁתֶּךָ וַתֹּאכַל מִן־הָעֵץ אֲשֶׁר צִוִּיתִיךָ לֵאמֹר לֹא תֹאכַל מִמֶּנּוּ אֲרוּרָה הָאֲדָמָה בַּעֲבוּרֶךָ בְּעִצָּבוֹן תֹּאכְלֶנָּה כֹּל יְמֵי חַיֶּיךָ׃
וּלְאָדָם אֲמַר אֲרֵי קַבֵּילְתָּ לְמֵימַר אִתְּתָךְ וַאֲכַלְתָּ מִן אִילָנָא דִּי פַקֵּידְתָּךְ לְמֵימַר לָא תֵיכוּל מִנֵּהּ לִיטָא אַרְעָא בְּדִילָךְ בְּעָמַל תִּיכְלִינַהּ כָּל יוֹמֵי חַיָּיךְ׃

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

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Genesis 3:18 · ×2

וְקוֹץ וְדַרְדַּר תַּצְמִיחַ לָךְ וְאָכַלְתָּ אֶת־עֵשֶׂב הַשָּׂדֶה׃
וְקוֹץ וְדַרְדַּר תַּצְמִיחַ לָךְ וְאָכַלְתָּ אֶת־עֵשֶׂב הַשָּׂדֶה׃
וְכוּבִין וְאָטְדִין תַּצְמַח לָךְ וְתֵיכוֹל יָת עִסְבָּא דְחַקְלָא׃

Genesis 3:19 · ×2

בְּזֵעַת אַפֶּיךָ תֹּאכַל לֶחֶם עַד שׁוּבְךָ אֶל־הָאֲדָמָה כִּי מִמֶּנָּה לֻקָּחְתָּ כִּי־עָפָר אַתָּה וְאֶל־עָפָר תָּשׁוּב׃
בְּזֵעַת אַפֶּיךָ תֹּאכַל לֶחֶם עַד שׁוּבְךָ אֶל־הָאֲדָמָה כִּי מִמֶּנָּה לֻקָּחְתָּ כִּי־עָפָר אַתָּה וְאֶל־עָפָר תָּשׁוּב׃
בְּזִיעָתָא דְאַפָּךְ תֵּיכוֹל לַחְמָא עַד דְּתִיתוּב לְאַרְעָא דְמִנַּהּ אִתְבְּרִיתָא אֲרֵי עַפְרָא אַתְּ וּלְעַפְרָא תְּתוּב׃

Genesis 3:20 · ×2

וַיִּקְרָא הָאָדָם שֵׁם אִשְׁתּוֹ חַוָּה כִּי הִוא הָיְתָה אֵם כָּל־חָי׃
וַיִּקְרָא הָאָדָם שֵׁם אִשְׁתּוֹ חַוָּה כִּי הִוא הָיְתָה אֵם כָּל־חָי׃
וּקְרָא אָדָם שׁוּם אִתְּתֵהּ חַוָּה אֲרֵי הִיא הֲוָת אִמָּא דְכָל בְּנֵי אֱנָשָׁא׃

Genesis 3:21 · ×2

וַיַּעַשׂ יְהוָה אֱלֹקִים לְאָדָם וּלְאִשְׁתּוֹ כָּתְנוֹת עוֹר וַיַּלְבִּשֵׁם׃
וַיַּעַשׂ יְהוָה אֱלֹקִים לְאָדָם וּלְאִשְׁתּוֹ כָּתְנוֹת עוֹר וַיַּלְבִּשֵׁם׃
וַעֲבַד יְיָ אֱלֹקִים לְאָדָם וּלְאִתְּתֵהּ לְבוּשִׁין דִּיקָר עַל מְשַׁךְ בִּשְׂרֵיהוֹן וְאַלְבִּישִׁינוּן׃

RASHI

Rashi on the day's aliyah

All fifty-two of Rashi's comments on Genesis 2:20-3:21, in the order of the verses — every gloss, every midrash, every tight paraphrase, nothing selected and nothing compressed. Three of the source-richest are examined below in 'How Rashi uses his sources.'

ולאדם לא מצא עזר.

ויפל ה' אלקים תרדמה. כְּשֶׁהֵבִיאָן לְפָנָיו כָּל מִין וְמִין זָכָר וּנְקֵבָה,

FOR THE MAN HE HAD NOT FOUND A HELP MEET FOR HIM ... AND THE ETERNAL GOD CAUSED AN OVERPOWERING SLEEP TO FALL — When He brought them, He brought them before him male and female of each and every kind.

Thereupon he said:

אָמַר לְכֻלָּם יֵשׁ בֶּן זוּג וְלִי אֵין בֶּן זוּג, מִיָּד וַיַּפֵּל (בראשית רבה):

all these have a mate, but I have no mate!

Immediately He caused to fall [an overpowering sleep upon him] (Genesis Rabbah 17:4).

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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מצלעותיו.

מִסְּטָרָיו, כְּמוֹ וּלְצֶלַע הַמִּשְׁכָּן (שמות כ"ו),

מצלעותיו *OF HIS RIBS — The word means of his sides, similar to (Exodus 26:20)* ולצלע המשכן *"and for the second side of the tabernacle";*

וְזֶהוּ שֶׁאָמְרוּ שְׁנֵי פַּרְצוּפִים נִבְרְאוּ (עירובין י"ז):

this has a bearing upon what they (the Sages) say, (Eruvin 18a):

They were created with two faces (sides).

ויסגור.

מְקוֹם הַחֲתָכָה:

ויסגור *AND HE CLOSED UP the place where it was cut (Berakhot 61b).*

ויישן ויקח.

שֶׁלֹּא יִרְאֶה חֲתִיכַת הַבָּשָׂר שֶׁמִּמֶּנּוּ נִבְרֵאת וְתִתְבַּזֶּה עָלָיו:

ויישן ויקח *AND HE SLEPT AND then HE TOOK in order that he should not see the piece of flesh out of which she was created, for she might be despised by him (Sanhedrin 39a).*

ויבן.

כְּבִנְיָן, רְחָבָה מִלְּמַטָּה וּקְצָרָה מִלְּמַעְלָה לְקַבֵּל הַוָּלָד כְּאוֹצָר שֶׁל חִטִּים,

שֶׁהוּא רָחָב מִלְּמַטָּה וְקָצָר מִלְּמַעְלָה שֶׁלֹּא יְכַבִּיד מַשָּׂאוֹ עַל קִירוֹתָיו:

ויבן *AND HE FORMED (literally, He built) — as a structure, wide below and narrower above for bearing the child, just as a wheat-store is wide below and narrower above so that its weight should not strain the walls (Berakhot 61a).*

ויבן את הצלע לאשה.

לִהְיוֹת אִשָּׁה, כְּמוֹ וַיַּעַשׂ אוֹתוֹ גִדְעוֹן לְאֵפוֹד (שופטים ח'), לִהְיוֹת אֵפוֹד:

ויבן את הצלע לאשה *AND HE MADE THE RIB INTO A WOMAN —* לאשה *means that is should become a woman, like (Judges 8:21) "and Gideon made it* לאפוד *" i. e., that it should become an ephod.*

זאת הפעם.

מְלַמֵּד שֶׁבָּא אָדָם עַל כָּל בְּהֵמָה וְחַיָּה,

וְלֹא נִתְקָרְרָה דַּעְתּוֹ בָּהֶם (יבמות ס"ג):

זאת הפעם *THIS NOW — This teaches that Adam endeavoured to find a companion among all cattle and beasts, but found no satisfaction except in Eve (Yevamot 63a).*

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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לזאת יקרא אשה כי מאיש וגו'.

לָשׁוֹן נוֹפֵל עַל לָשׁוֹן מִכָּאן שֶׁנִּבְרְא הָעוֹלָם בִּלְשׁוֹן הַקּוֹדֶשׁ (בראשית רבה):

לזאת יקרא אשה כי מאיש וגו *THIS SHALL BE CALLED WOMAN, BECAUSE THIS WAS TAKEN OUT OF MAN — Here we have a kind of play upon words (the words* אשה *and* איש *sounding similar):*

hence we may learn that the language used at the time of the Creation was the Holy Tongue (Hebrew) (Genesis Rabbah 18:4).

על כן יעזב איש.

רוּחַ הַקּוֹדֶשׁ אוֹמְרָה כֵּן לֶאֱסֹר עַל בְּנֵי נֹחַ הָעֲרָיוֹת (סנהדרין נ"ז):

על כן יעזב איש *THEREFORE A MAN LEAVETH — The Divine Spirit says this, thus prohibiting immoral relationship to the "Sons of Noah" also (Sanhedrin 57b).*

לבשר אחד.

הַוָּלָד נוֹצָר עַל יְדֵי שְׁנֵיהֶם וְשָׁם נַעֲשֶׂה בְּשָׂרָם אֶחָד (שם נ"ח):

לבשר אחד *ONE FLESH — Both parents are united in the child.*

ולא יתבוששו.

שֶׁלֹּא הָיוּ יוֹדְעִים דֶּרֶךְ צְנִיעוּת לְהַבְחִין בֵּין טוֹב לָרָע,

וְאַע"פ שֶׁנִּתְּנָה בּוֹ דֵּעָה לִקְרוֹת לוֹ שֵׁמוֹת,

ולא יתבוששו *AND THEY WERE NOT ASHAMED — for they did not know what modestly meant, so as to distinguish between good and evil.*

לֹא נִתַּן בּוֹ יֵצֶר הָרָע עַד אָכְלוֹ מִן הָעֵץ וְנִכְנַס בּוֹ יֵצֶר הָרָע וְיָדַע מַה בֵּין טוֹב לָרָע (בראשית רבה):

Although he (Adam) had been endowed with knowledge to give names to all creatures, yet the evil inclination did not become an active principle in him until he had eaten of the tree, when it entered into him and he became aware of the difference between good and evil.

והנחש היה ערום.

מָה עִנְיָן זֶה לְכָאן? הָיָה לוֹ לִסְמֹךְ וַיַּעַשׂ לְאָדָם וּלְאִשְׁתּוֹ כָּתְנוֹת עוֹר וַיַּלְבִּשֵׁם,

והנחש היה ערום *AND THE SERPENT WAS MORE SUBTLE — What connection is there between the following narrative and the statement just made?*

אֶלָּא לְמֶדְךָ מֵאֵיזוֹ עֵצָה קָפַץ הַנָּחָשׁ עֲלֵיהֶם,

The latter should have been followed by: "and He [the Lord God] made for Adam and his wife garments of skin and clothed them" (3:21), but Scripture informs you with what plan the serpent assailed them:

רָאָה אוֹתָם עֲרֻמִּים וְעוֹסְקִים בְּתַשְׁמִישׁ לְעֵין כֹּל וְנִתְאַוָּה לָהּ:

he saw them naked and unashamed and he coveted her (Eve) (Genesis Rabbah 18:6).

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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ערום מכל.

לְפִי עֲרְמָתוֹ וּגְדֻלָּתוֹ הָיְתָה מַפָּלָתוֹ, עָרוּם מִכֹּל, אָרוּר מִכֹּל (בראשית רבה):

ערום מכל *MORE SUBTLE THAN ALL — Corresponding with his subtleness and his greatness was his downfall; "more subtle than all" — "more cursed than all" (see 3:14).*

(Genesis Rabbah 19:1).

אף כי אמר וגו'.

שֶׁמָּא אָמַר לָכֶם לֹא תֹאכְלוּ מִכֹּל וְגוֹ',

וְאַע"פ שֶׁרָאָה אוֹתָם אוֹכְלִים מִשְּׁאָר פֵּרוֹת,

הִרְבָּה עָלֶיהָ דְּבָרִים כְּדֵי שֶׁתְּשִׁיבֶנּוּ וְיָבֹא לְדַבֵּר בְּאוֹתוֹ הָעֵץ:

אף כי אמר וגו' *ALTHOUGH GOD HATH SAID — The meaning is, "Perhaps He has said unto you" וגו'* לא תאכלו מכל *YE SHALL NOT EAT OF EVERY TREE OF THE GARDEN — And although he saw them eating of the other fruits yet he entered into a long conversation with her so that she should answer him, and so that he might then have an opportunity to talk about that particular tree.*

ולא תגעו בו.

הוֹסִיפָה עַל הַצִּוּוּי, לְפִיכָךְ בָּאָה לִידֵי גֵּרָעוֹן,

ולא תגעו בו *NEITHER SHALL YE TOUCH IT — She added to God's command (which did not forbid touching the tree, but only eating of its fruit) therefore she was led to diminish from it.*

הוּא שֶׁנֶּאֱמַר אַל תּוֹסֶף עַל דְּבָרָיו (משלי ל'):

It is to this that the text refers (Proverbs 30:6): "Add thou not unto His words" (Genesis Rabbah 19:3).

לא מות תמותון.

דְּחָפָהּ עַד שֶׁנִּגְּעָה בּוֹ, אָמַר לָהּ כְּשֵׁם שֶׁאֵין מִיתָה בִּנְגִיעָה, כָּךְ אֵין מִיתָה בַּאֲכִילָה (בראשית רבה):

לא מות תמתון *YE SHALL NOT SURELY DIE — He pushed her until she touched it.*

He then said to her, "Just as there is no death in touching it, so there is no death in eating it" (Genesis Rabbah 19:3).

כי ידע.

כָּל אֻמָּן שׂוֹנֵא אֶת בְּנֵי אֻמְנוּתוֹ, מִן הָעֵץ אָכַל וּבָרָא אֶת הָעוֹלָם (בראשית רבה):

כי ידע *FOR [GOD] KNOWS — Every artisan detests his fellow-artisans ("Two of a trade never agree").*

The serpent suggested to her:

God ate of the tree and created the world (Genesis Rabbah 19:4) so if you eat ...

והייתם כאלקים.

יוֹצְרֵי עוֹלָמוֹת (בראשית רבה):

והייתם כאלקים *YE WILL BE AS GOD — Creators of worlds.*

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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ותרא האשה.

רָאֲתָה דְבָרָיו שֶׁל נָחָשׁ וְהֶנְאוּ לָהּ וְהֶאֱמִינַתּוּ (בראשית רבה):

ותרא האשה *AND THE WOMAN SAW — She approved the words of the serpent — they pleased her and she believed him (Genesis Rabbah 19:3).*

כי טוב העץ.

לִהְיוֹת כֵּאלֹקִים:

כי טוב העץ *THAT THE TREE WAS GOOD to make her become like God.*

וכי תאוה הוא לעינים.

כְּמוֹ שֶׁאָמַר לָהּ וְנִפְקְחוּ עֵינֵיכֶם:

וכי תאוה היא לעינים *AND THAT IT WAS A DELIGHT TO THE EYES — even as he had said to her: "then your eyes shall be opened".*

ונחמד להשכיל.

כְּמוֹ שֶׁאָמַר לָהּ יוֹדְעֵי טוֹב וָרָע:

ונחמד להשכיל *AND IT WAS TO BE DESIRED TO MAKE ONE WISE — even as he had said to her: "knowing good and evil".*

ותתן גם לאישה.

שֶׁלֹּא תָמוּת הִיא וְיִחְיֶה הוּא, וְיִשָּׂא אַחֶרֶת:

ותתן גם לאשה *AND SHE GAVE ALSO TO HER HUSBAND so that she should not die and he remain alive to take another wife (Genesis Rabbah 19:5).*

גם.

לְרַבּוֹת בְּהֵמָה וְחַיָּה:

The word גם*, also, may be understood to include cattle and beasts (that is, that she gave to these and also to her husband) (Genesis Rabbah 19:5).*

ותפקחנה וגו'.

לְעִנְיַן הַחָכְמָה דִּבֵּר הַכָּתוּב וְלֹא לְעִנְיַן רְאִיָּה מַמָּשׁ, וְסוֹף הַמִּקְרָא מוֹכִיחַ:

ותפקחנה וגו' *[AND THE EYES OF BOTH OF THEM] WERE UNCLOSED — Scripture speaks here with reference to intelligence (the mind's eye) and not with reference to actual seeing;*

the end of the verse proves this for it states,

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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וידעו כי עירמים הם.

אַף הַסּוּמָא יוֹדֵעַ כְּשֶׁהוּא עָרוֹם, אֶלָּא מַהוּ וַיֵּדְעוּ כִּי עֵירֻמִּם הֵם?

וידעו כי ערומים הם *AND THEY KNEW THAT THEY WERE NAKED — Even a blind person knows when he is naked!*

מִצְוָה אַחַת הָיְתָה בְיָדָם וְנִתְעָרְטְלוּ הֵימֶנָּה (בראשית רבה):

What then does "and they knew that they were naked" signify?

One charge had been entrusted to them and they now knew they had stripped themselves of it (Genesis Rabbah 19:6).

עלה תאנה.

הוּא הָעֵץ שֶׁאָכְלוּ מִמֶּנּוּ, בַּדָּבָר שֶׁנִּתְקַלְקְלוּ בּוֹ נִתַּקְּנוּ (סנהדרין ע'),

עלה תאנה *FIG LEAVES — This was the tree of which they had eaten;*

אֲבָל שְׁאָר הָעֵצִים מְנָעוּם מִלִּטֹּל עֲלֵיהֶם. וּמִפְּנֵי מָה לֹא נִתְפַּרְסֵם הָעֵץ?

by the very thing through which their ruin had been caused was some improvement effected in their condition (Sanhedrin 70b).

The other trees however prevented them from taking of their leaves.

שֶׁאֵין הַקָּבָ"ה חָפֵץ לְהוֹנוֹת בְּרִיָּה,

And why is not the name of the tree clearly mentioned?

שֶׁלֹּא יַכְלִימוּהָ וְיֹאמְרוּ זֶהוּ שֶׁלְּקָה הָעוֹלָם עַל יָדוֹ, מִדְרַשׁ רַבִּי תַּנְחוּמָא:

Because the Holy One, blessed be He, never wishes to grieve anything He has created:

hence its name is not mentioned in order that it might not be put to shame by people saying, "This is the tree through which the world suffered" (Midrash R. Tanchuma 1:4:14).

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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וישמעו.

יֵשׁ מִדְרָשֵׁי אַגָּדָה רַבִּים וּכְבָר סִדְּרוּם רַבּוֹתֵינוּ עַל מְכוֹנָם בְּבָב"ַר וּבִשְׁאָר מִדְרָשׁוֹת;

וישמעו *AND THEY HEARD — There are many Midrashic explanations and our Teachers have already collected them in their appropriate places in Genesis Rabbah and in other Midrashim.*

וַאֲנִי לֹא בָאתִי אֶלָּא לִפְשׁוּטוֹ שֶׁל מִקְרָא וּלְאַגָּדָה הַמְיֻשֶּׁבֶת דִּבְרֵי הַמִּקְרָא דָּבָר דָּבוּר עַל אָפְנָיו: וישמעו. מַה שָּׁמְעוּ?

I, however, am only concerned with the plain sense of Scripture and with such Agadoth that explain the words of Scripture in a manner that fits in with them. וישמעו *AND THEY HEARD — What did they hear?*

שָׁמְעוּ אֶת קוֹל הַקָּבָ"ה שֶׁהָיָה מִתְהַלֵּךְ בַּגָּן:

They heard the sound of the Holy One, blessed be He, as He walked in the garden (see Genesis Rabbah 19:12).

לרוח היום.

לְאוֹתוֹ רוּחַ שֶׁהַשֶּׁמֶשׁ בָּאָה לְשָׁם, וְזוֹ הִיא מַעֲרָבִית; שֶׁלִּפְנוֹת עֶרֶב חַמָּה בַּמַּעֲרָב, וְהֵם סָרְחוּ בָּעֲשִׂירִית (סנהדרין ל"ח):

לרוח היום *IN THE WIND OF THE DAY —* (רוח *is used also in the meaning of direction,— north, east, — etc.) in that direction to which the sun travels (*באה לשם*) which is the west, for towards evening the sun is in the west, and they committed the sin in the tenth hour (Sanhedrin 38b).*

איכה.

יוֹדֵעַ הָיָה הֵיכָן הוּא אֶלָּא לְכָנֵס עִמּוֹ בִּדְבָרִים,

שֶׁלֹּא יְהֵא נִבְהָל לְהָשִׁיב אִם יַעֲנִישֵׁהוּ פִּתְאוֹם (בראשית רבה),

איכה *WHERE ART THOU — He knew where he was, but He asked this in order to open up a conversation with him that he should not become confused in his reply, if He were to pronounce punishment against him all of a sudden.*

וְכֵן בְּקַיִן אָמַר לוֹ אֵי הֶבֶל אָחִיךָ (בראשית ד),

וְכֵן בְּבִלְעָם מִי הָאֲנָשִׁים הָאֵלֶּה עִמָּךְ (במדבר כ"ב), לִכָּנֵס עִמָּהֶם בִּדְבָרִים,

Similarly in the case of Cain, He said to him, (4:9) "where is Abel thy brother?" Similarly with Balaam, (Numbers 22:9) "what men are these with thee?" — to open up a conversation with them;

וְכֵן בְּחִזְקִיָּה בִּשְׁלוּחֵי מְרֹאדַךְ בַּלְאֲדָן:

so, also, in the case of Hezekiah with reference to the messengers of Merodach-baladan (Isaiah 39:3).

מי הגיד לך.

מֵאַיִן לְךָ לָדַעַת מַה בֹּשֶׁת יֵשׁ בְּעוֹמֶד עָרֹם?

מי הגיד לך *WHO TOLD THEE? — Whence has the knowledge come to you what shame there is in standing naked?*

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המן העץ.

בְּתָמִיהָ:

המן העץ *HAST THOU EATEN OF THE TREE — The* ה *of the word* המן *expresses a question.*

אשר נתתה עמדי.

כָּאן כְּפַר בַּטּוֹבָה (עבודה זרה ה):

אשר נתת עמדי *WHOM THOU GAVEST TO BE WITH ME — Here he showed his ingratitude (Avodah Zarah 5b).*

השיאני.

הִטְעַנִי, כְּמוֹ אַל יַשִּׁיא אֶתְכֶם חִזְקִיָּהוּ (דברי הימים ב' ל"ב):

השיאני *means HE DECEIVED ME; — we find the word in the same meaning in (2 Chronicles 32:15), "Now therefore let not Hezekiah beguile you" (Genesis Rabbah 19).*

כי עשית זאת.

מִכָּאן שֶׁאֵין מְהַפְּכִים בִּזְכוּתוֹ שֶׁל מֵסִית, שֶׁאִלּוּ שְׁאָלוֹ לָמָּה עָשִׂיתָ זֹאת?

כי עשית זאת *BECAUSE THOU HAST DONE THIS — From here we infer that we should not occupy ourselves with what may be in favour of one who seduces people to idolatry, for had He asked it, "Why hast thou done this?", it could have answered Him, "When the words of the teacher and those of the pupil are contradictory, whose orders should be obeyed?" (Sanhedrin 29a).*

הָיָה לוֹ לְהָשִׁיב דִּבְרֵי הָרַב וְדִבְרֵי הַתַּלְמִיד דִּבְרֵי מִי שׁוֹמְעִין? (סנהדרין כ"ט):

(i. e. if You told them one thing and I another, should they not have obeyed You?).

מכל הבהמה ומכל חית השדה.

אִם מִבְּהֵמָה נִתְקַלֵּל מֵחַיָּה לֹא כָּל שֶׁכֵּן,

מכל הבהמה ומכל חית השדה *FROM AMONG (or, MORE THAN) ALL CATTLE AND ALL THE BEASTS OF THE FIELD — If it was cursed more than the cattle whose period of gestation is longer than that of beasts does it not necessarily follow that it was cursed more than the beasts?*

הֶעֱמִידוּ רַבּוֹתֵינוּ מִדְרָשׁ זֶה בְּמַסֶּכֶת בְּכוֹרוֹת (דף ח') לְלַמֵּד שֶׁיְּמֵי עִבּוּרוֹ שֶׁל נָחָשׁ שֶׁבַע שָׁנִים:

Our Rabbis have definitely established the correctness of the following deduction in treatise Bekhorot 8a, that it (viz., the use of these apparently superfluous words "and more than all the beasts of the field") teaches that the period of gestation of the serpent is seven years.

על גחונך תלך.

רַגְלַיִם הָיוּ לוֹ וְנִקְצְצוּ:

על גחנך תלך *UPON THY BELLY SHALT THOU GO — It had feet but they were cut off (Genesis Rabbah 20:5).*

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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ואיבה אשית.

אַתָּה לֹא נִתְכַּוַּנְתָּ אֶלָּא שֶׁיָּמוּת אָדָם כְּשֶׁיֹּאכַל הוּא תְּחִלָּה וְתִשָּׂא אֶת חַוָּה,

ואיבה אשית *AND I WILL SET ENMITY — Your sole intention was that Adam should die by eating it first and that you should then take Eve for yourself (Genesis Rabbah 20:5), and you came to speak to Eve first only because women are easily influenced and know how to influence their husbands;*

וְלֹא בָאתָ לְדַבֵּר אֶל חַוָּה תְּחִלָּה אֶלָּא לְפִי שֶׁהַנָּשִׁים קַלּוֹת לְהִתְפַּתּוֹת וְיוֹדְעוֹת לְפַתּוֹת אֶת בַּעֲלֵיהֶן, לְפִיכָךְ וְאֵיבָה אָשִׁית:

therefore "I shall put enmity [between thee and the woman]".

ישופך.

יְכַתֶּתְךָ (סוטה ט') כְּמוֹ וָאֲכֹת אֹתוֹ (דברים ט), וְתַרְגּוּמוֹ וְשָׁפִית יָתֵי':

הוא ישופך *HE WILL BRUISE (or, POUND) THEE— Like (Deuteronomy 9:21), "And I beat in pieces" which Onkelos translates by* ושפית *"I pounded it."*

ואתה תשופנו עקב.

לֹא יְהֵא לְךָ קוֹמָה וְתִשְׁכְּנוּ בַּעֲקֵבוֹ, וְאַף מִשָּׁם תְּמִיתֶנּוּ,

ואתה תשופנו עקב *AND THOU SHALT BRUISE HIS HEEL — As you will have no height (not stand erect) you will be able to bite him only on the heel, but even at that spot you will kill him.*

וּלְשׁוֹן תְּשׁוּפֶנּוּ כְּמוֹ נָשַׁף בָּהֶם (ישעיהו מ') כְּשֶׁהַנָּחָשׁ בָּא לִנְשֹׁךְ הוּא נוֹשֵׁף כְּמִין שְׁרִיקָה וּלְפִי שֶׁהַלְּשׁוֹן נוֹפֵל עַל הַלָּשׁוֹן כְּתִיב לְשׁוֹן נְשִׁיפָה בִּשְׁנֵיהֶם:

The word תשופנו *is of the same import as the verb in (Isaiah 40:24).* נשף בהם *"It bloweth upon them." When a serpent comes to bite, it blows with a kind of hissing sound.*

Although the words ישופך *and* תשופנו *have different meanings, since they constitute "a play upon words" by sounding similar, they are both used here.*

עצבונך.

זֶה צַעַר גִּדּוּל בָּנִים (עירובין ק'):

עצבנך *THY PAIN — viz., the trouble of rearing children (Eruvin 100b).*

והרנך.

זֶה צַעַר הָעִבּוּר:

והרונך *AND THY CONCEPTION— viz., the pain of pregnancy.*

בעצב תלדי בנים.

זֶה צַעַר הַלֵּדָה:

בעצב תלדי בנים *IN PAIN THOU SHALT BEAR CHILDREN — This refers to the pangs of childbirth (Eruvin 100b).*

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ואל אישך תשוקתך.

לְתַשְׁמִישׁ, וְאַעַפ"כִּי אֵין לָךְ מֵצַח לְתָבְעוֹ בַּפֶּה, אֶלָּא הוּא יִמְשָׁל בָּךְ, הַכֹּל מִמֶּנּוּ וְלֹא מִמֵּךְ:

ואל אישך תשוקתך *AND TO YOUR HUSBAND WILL BE YOUR DESIRE — for sexual relations.*

And, nonetheless, you will not have the temerity to proposition him with [your] mouth, but rather HE WILL RULE OVER YOU — everything will come from him and not from you.

תשוקתך.

תַּאֲוָתֵךְ, כְּמוֹ נֶפֶשׁ שׁוֹקֵקָה (ישעיהו כ"ט):

תשוקתך *THY DESIRE — Similar to (Isaiah 29:8),* ונפשו שוקקה *"and his soul hath appetite", (desires).*

ארורה האדמה בעבורך.

מַעֲלָה לְךָ דְּבָרִים אֲרוּרִים, כְּגוֹן זְבוּבִים, פַּרְעוֹשִׁים וּנְמָלִים,

ארורה האדמה בעבורך *CURSED BE THE GROUND FOR THY SAKE — It will produce to you cursed objects such as flies, fleas and ants;*

מָשָׁל לְיוֹצֵא לְתַרְבּוּת רָעָה וְהַבְּרִיּוֹת מְקַלְלוֹת שָׁדַיִם שֶׁיָּנַק מֵהֶם:

it may be compared to the case of one who gets into depraved ways, and people curse the breasts at which he was suckled (Genesis Rabbah 5:9).

וקוץ ודרדר תצמיח לך.

הָאָרֶץ כְּשֶׁתִּזָּרֵעֲנָה מִינֵי זְרָעִים, תַּצְמִיחַ קוֹץ וְדַרְדַּר קַנְדָּס וְעַכָּבִיּוֹת,

וקוץ ודרדר תצמיח לך *THORNS ALSO AND THISTLES SHALL IT BRING FORTH TO THEE—* תצמיח *has for subject the earth;*

וְהֵן נֶאֱכָלִין עַל יְדֵי תִּקּוּן (ביצה ל"ד):

when you sow it with various kinds of grain, it shall bring forth thorns and thistles — artichokes and cardoon — which are fit for food only after special preparation (Genesis Rabbah 20:10).

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ואכלת את עשב השדה.

וּמַה קְּלָלָה הִיא זוֹ? וַהֲלֹא בַּבְּרָכָה נֶאֱמַר לוֹ הִנֵּה נָתַתִּי לָכֶם אֶת כָּל עֵשֶׂב זֹרֵעַ זֶרַע וְגוֹ'?

ואכלת את עשב השדה *AND THOU SHALT EAT THE HERB OF THE FIELD — What curse is involved here?*

אֶלָּא מָה אָמוּר כָּאן בְּרֹאשׁ הָעִנְיָן אֲרוּרָה הָאֲדָמָה בַּעֲבוּרֶךָ בְּעִצָּבוֹן תֹּאכְלֶנָּה,

Was he not told as a blessing, (1:29) "Behold I have given unto you every herb yielding seed"?

וְאַחַר הָעִצָּבוֹן וְקוֹץ וְדַרְדַּר תַּצְמִיחַ לָךְ,

But what is stated here at the beginning of this passage? "Cursed be the ground etc.... in toil shalt thou eat of it." And after all your toil "thorns and thistles shall it bring forth to thee".

כְּשֶׁתְּזָרְעֶנָּה קִטְנִית אוֹ יְרָקוֹת גִּנָּה הִיא תַצְמִיחַ לְךָ קוֹצִים וְדַרְדָּרִים וּשְׁאָר עִשְׂבֵי הַשָּׂדֶה וְעַל כָּרְחֲךָ תֹּאכְלֵם:

This means when you sow it with cereals and vegetables it shall bring forth for you thorns and thistles and other weeds, and you will perforce have to eat them for lack of other food (Pirkei DeRabbi Eliezer 14).

בזעת אפיך.

לְאַחַר שֶׁתִּטְרַח בּוֹ הַרְבֵּה:

בזעת אפיך *IN THE SWEAT OF THY FACE — after you have taken all this great trouble.*

ויקרא האדם.

חָזַר הַכָּתוּב לְעִנְיָנוֹ הָרִאשׁוֹן וַיִּקְרָא הָאָדָם שֵׁמוֹת,

וְלֹא הִפְסִיק אֶלָּא לְלַמֶּדְךָ שֶׁעַל יְדֵי קְרִיאַת שֵׁמוֹת נִזְדַּוְּגָה לוֹ חַוָּה,

ויקרא האדם *AND THE MAN CALLED — Scripture now reverts to its previous topic (Genesis 2:20) beginning with "and the man gave names".*

כְּמוֹ שֶׁכָּתוּב וּלְאָדָם לֹא מָצָא עֵזֶר כְּנֶגְדּוֹ, לְפִיכָךְ, וַיַּפֵּל תַּרְדֵּמָה, וְעַל יְדֵי שֶׁכָּתַב וַיִּהְיוּ עֲרוּמִים, סָמַךְ לוֹ פָּרָשַׁת הַנָּחָשׁ,

It broke it off (that is, interpolated the story of the serpent) only to tell you that through the giving of names Eve became his mate, as it is written (Genesis 2:20) "but for Adam there was not found a help meet for him," and that therefore "the [Lord God] caused to fall a deep sleep upon him" and formed Eve.

לְהוֹדִיעֲךָ שֶׁמִּתּוֹךְ שֶׁרָאָה עֶרְוָתָהּ וְרָאָה אוֹתָם עֲסוּקִים בְּתַשְׁמִישׁ נִתְאַוָּה לָהּ וּבָא עֲלֵיהֶם בְּמַחֲשָׁבָה וּבְמִרְמָה:

But because Scripture writes at the end of the story of creation of Eve (Genesis 2:25), "and they were both naked", it therefore follows on with the passage dealing with the serpent, to inform you that because he saw her nakedness and that they displayed no feeling of shame in their actions, he desired her, and he came upon them with his evil plan and with deceit.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

DAILY READER

PARSHAT BERESHIT

When the law cannot know, it decides who must prove.

Tuesday, 6 October 2026 · Aliyah 3/7 (Genesis 2:20-3:21) · Daf Bekhorot 18

חוה.

נוֹפֵל עַל לְשׁוֹן חַיָּה, שֶׁמְּחַיָּה אֶת וְלָדוֹתֶיהָ,

חוה *EVE* — חוה *has the same sound as* חיה *(and similar meaning "life") — she was so called because she gives life (birth) to her children;*

כַּאֲשֶׁר תֹּאמַר מָה הוֹוֶה לָאָדָם (קהלת ב'), בִּלְשׁוֹן הָיָה:

the interchange of י *and* ו *is similar to that in (Ecclesiastes 2:22),* מה הוה לאדם *"for what hath a man", where* הוה *is used in the sense of* היה *"to be."*

כתנות עור.

יֵשׁ דִּבְרֵי אַגָּדָה אוֹמְרִים חֲלָקִים כְּצִפָּרֶן הָיוּ מְדֻבָּקִים עַל עוֹרָן וְיֵ"א דָּבָר הַבָּא מִן הָעוֹר,

כתנות עור *GARMENTS FOR THE SKIN — There are Agadoth which say that they were smooth as fingernails, cleaving to their skin;*

כְּגוֹן צֶמֶר הָאַרְנָבִים שֶׁהוּא רַךְ וְחָם וְעָשָׂה לָהֶם כֻּתָּנוֹת מִמֶּנּוּ:

whereas some say that they were made of material that comes from skin, as for example, the hair of hares which is soft and warm, and of this He made garments for them (Genesis Rabbah 20:12).

HOW RASHI USES HIS SOURCES

Quotation, compression, and the prooftext

Three moments show Rashi's editorial range. On 'zot hapa'am' (2:23), Rashi compresses an entire Yevamot 63a aggadah — Adam 'coming upon' every beast and finding no satisfaction — into one line: 'melamed she-ba adam al kol behemah vechaya.' The Talmud's point was that a man without a wife is not called adam; Rashi keeps only what the verse needs, an unattributed compression with the source named in the citation. On 'lezot yikare ishah' (2:23), he quotes Bereshit Rabbah 18:4 almost verbatim — the wordplay of ish and ishah — and draws its famous conclusion: hence the world was created in the holy tongue. Here the source does the thinking, and Rashi is its scribe.

On 'velo tig'u bo' (3:3), Rashi runs the opposite direction. The woman added to the commandment — God had forbidden eating, not touching — and Rashi supplies the moral via Proverbs 30:6, 'do not add to His words,' a citation he takes from Bereshit Rabbah 19:3 (cf. Sanhedrin 29a). The comment is an explicit peshat-aggadah pivot: what begins as a gloss on the woman's words ends as a warning about fences around Torah. Rashi does not invent the link; he chooses which midrash gets to speak, and which one gets cut.

Spotlight comments from rashi.json (source_spotlight=true): Genesis 2:23 'zot hapa'am' (Yevamot 63a:5); Genesis 2:23 'lezot yikare ishah' (Bereshit Rabbah 18:4); Genesis 3:3 'velo tig'u bo' (Sanhedrin 29a:34; Bereshit Rabbah 19:3). Relationships described from the comment text and the fetched source excerpts.

WORD STUDIES

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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Three words from the aliyah

Three words from the day's aliyah — the divine name as it recurs twelve times in these verses, the verb 'and He said' that carries the whole dialogue, and the Tetragrammaton that first appears here. Their lexicon entries are printed beside each narrative. One archival note: the Comprehensive Aramaic Lexicon (cal.huc.edu) prohibits scraping, so Aramaic coverage here is Jastrow and BDB via Sefaria, not direct CAL entries.

אֱלֹקִים

Jastrow · אלקים

— , v. אלוה

Klein · אלקים

m.n. pl.

— God (pl. of majesty).

BDB · אלקים

— n.m.pl. (f. 1 K 11:33; on number of occurrences of אל, אלוה, אלקים cf. also Nesl.c.)

Klein calls it 'God (pl. of majesty),' and the tension is in the grammar: a plural noun married to singular verbs. It enters the Bible in the very first verse, and in this aliyah it appears twelve times — speaking, forming, planting, walking in the garden at the breezy time of day. BDB's entry tracks the word's wider forms too, down to the feminine in 1 Kings 11:33, a reminder that אלקים stretches beyond one shape. That stretch is the aliyah's crisis: when the serpent says 'you will be like אלקים, knowing good and bad,' the word has become the promise itself — divine status, available for theft. What the arc reveals: the name of the absolute spends this chapter doing the most intimate work.

אמר

Klein · אמר I

BDB · אמר

— vb. utter, say (MI Ph. אמר, Aramaic אמר, Ethiopic I. 2 shew, declare, Arabic command; perhaps אמר orig. = be or make prominent, hence Hithp. infr., אמיר; Sab. אמר lofty, epith. of king JHMordtmZMG 1876,

BDB Aramaic · אמר

— vb. say, tell, command (BH אמר);—

Jastrow gives the root אמר an unlikely childhood: 'to join, knot; to be knotted, thick,' then 'to heap up,' and only by transfer 'to join words, compose' — speech as knotting. BDB says 'utter, say,' but adds the Semitic company: Phoenician and Aramaic אמר, Ethiopic, and Arabic amar — 'command.' That last cognate is the aliyah's secret. In Genesis 2:20-3:21, ויאמר carries every turning of the drama: God says to the human, the human says, the serpent says, God says to the serpent, to the woman, to the man. And here saying is commanding — 'of the tree of knowledge you shall not eat' — and commanding is cursing.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr

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The word travels from knotting syllables to pronouncing destiny: by the aliyah's end, the verb that opened the chapter with naming closes it with judgment.

יְהוָֹה

Klein · יהוה

m.n.

— the proper name of God in the Bible, Tetragrammaton.

BDB · יהוה

— 6823 i.e. יהוה n.pr.dei Yahweh, the proper name of the God of Israel—(1. MT יהוה6518 (Qr אדני), or יהוה305 (Qr אלקים), in the combinations יהוה אדני & אדני יהוה (vid. אדני), and with prep. ביהוה, ל

BDB · יהוה[2]

— n.pr.dei, v. sub הוה p. 217 ff.

Klein's entry is one line and a world: 'the proper name of God in the Bible, Tetragrammaton.' BDB counts 6,823 appearances and notes the famous split between the word as written and as spoken — the Masoretes point it to be read Adonai, or to be read Elohim: the most frequent divine name in the Bible is the one never pronounced as written. In this aliyah, the יהוה-אלקים pair is the signature, nine occurrences of the name alone, and they cluster around the most physical verbs: forming the human from the dust, planting the garden, making garments of skin. The arc: the unspoken name turns out to be the name of the God who gets His hands dirty. In later tradition the name retreats behind euphemism; here, in the garden, it is still out in the open, walking at the breezy time of day.

y Jev (jev-1.13.0). Mikra: Sefaria Hebrew + Targum Onkelos. Rashi: Sefaria; sources via Sefaria links. Lexicons: Klein, Jastrow, BDB via Sefaria; Maagarim via the Historical Dictionary Pr